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Marine Corps Base (MCB) Camp Lejeune Contractor Environmental Guide

Prepared For:

Marine Corps Installations East-Marine Corps Base Camp Lejeune

Version Number 3



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INTERNATIONAL



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RECORD OF CHANGES

Date	Description of Changes	Page #	Name/Initials

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CERTIFICATION PAGE

I certify that I have read, understood, and accept this document and all attachments, and that all those within my party working on a job site within Marine Corps Base Camp Lejeune and/or Marine Corps Air Station New River will comply with the environmental policies and regulations herein. I am aware that there are penalties for not complying with this Guide.

Signature

Date

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LIST OF ACRONYMS AND ABBREVIATIONS

ACM	Asbestos-Containing Material
AHERA	Asbestos Hazard and Emergency Response Act
AHPA	Archaeological and Historic Preservation Act
ARPA	Archeological Resource Protection Act
ASHARA	Asbestos School Hazard Abatement Reauthorization Act
ASD	Accumulation Start Date
ASO	Air Station Order
BMP	Best Management Practice
BO	Base Order
C&D	Construction and Demolition
CAA	Clean Air Act
CAMA	Coastal Area Management Act
CERCLA	Comprehensive Environmental Response, Compensation, and Liability
CETEP	Comprehensive Environmental Training and Education Program
CFC	Chlorofluorocarbon
CFR	Code of Federal Regulations
CG	Commanding General
CWA	Clean Water Act
CZMA	Coastal Zone Management Act
DHHS	Department of Health and Human Services
DLADS	Defense Logistics Agency Disposition Services
DM	Decision Memorandum

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DMM	Discarded Military Munitions
DoD	Department of Defense
DoN	Department of Navy
DOT	Department of Transportation
DRMS	Defense Reutilization and Marketing Service
EA	Environmental Assessment
EAD	Environmental Affairs Department
ECON	Environmental Conservation Branch
EISA	Energy Independence and Security Act
EHS	Extremely Hazardous Substances
ELLAP	Environmental Lead Laboratory Accreditation Program
EMD	Environmental Management Division
EMS	Environmental Management System
EO	Executive Order
EOD	Explosives and Ordnance Disposal
EPA	Environmental Protection Agency
EPR	Extended Producer Responsibility
EPCRA	Emergency Planning and Community Right-to-Know Act
EPEAT	Electronic Product Environmental Assessment Tool
FAR	Federal Acquisition Regulation
FIFRA	Federal Insecticide, Fungicide, and Rodenticide Act
FSC	Facilities Support Contracts
FWS	Fish and Wildlife Service
GIS	Geographic Information System
GP	Green Procurement
HAP	Hazardous Air Pollutants

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HCFC	Hydrochlorofluorocarbon
HCS	Hazard Communication Standard
HHCU	Health Hazards Control Unit (North Carolina)
HM	Hazardous Material
HMTA	Hazardous Materials Transportation Act
HQMC	Headquarters Marine Corps
HQW	High Quality Water
HVAC	Heating, Ventilation, and Air Conditioning
HW	Hazardous Waste
HWMP	Hazardous Waste Management Plan
IGI&S	Installation Geospatial Information & Services
INRMP	Integrated Natural Resources Management Plan
IRP	Installation Restoration Program
LBP	Lead-Based Paint
LDA	Land-Disturbing Activities
LQG	Large Quantity Generator
MAG	Marine Aircraft Group
MCAS	Marine Corps Air Station
MCB	Marine Corps Base
MCM	Minimum Control Measure
MCIEAST	Marine Corps Installations East
MCO	Marine Corps Order
MEC	Munitions and Explosives of Concern
MEF	Marine Expeditionary Force
MRF	Materials Recovery Facility
MS4	Municipal Separate Storm Sewer Systems
MSW	Municipal Solid Waste
NAPL	Non-Aqueous Phase Liquid

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NC	North Carolina
NCAC	North Carolina Administrative Code
NCDAQ	North Carolina Department of Air Quality
NCDCM	North Carolina Division of Coastal Management
NCDEQ	North Carolina Department of Environmental Quality
NCDFR	North Carolina Division of Forest Resources
NCDMS	North Carolina Division of Mitigation Services
NCDWR	North Carolina Division of Water Resources
NEPA	National Environmental Policy Act
NESHAP	National Emission Standards for Hazardous Air Pollutants
NHPA	National Historic Preservation Act
NPDES	National Pollutant Discharge Elimination System
NPL	National Priorities List
NRC	National Response Center
NRHP	National Register of Historic Places
ODS	Ozone-Depleting Substance
OPA	Oil Pollution Act
ORW	Outstanding Resource Water
OSHA	Occupational Safety and Health Administration
OWS	Oil-Water Separator
P2	Pollution Prevention
PACM	Presumed Asbestos-Containing Material
PCB	Polychlorinated biphenyl
POC	Point of Contact
POL	Petroleum, Oil, and Lubricant
PPA	Pollution Prevention Act
ppm	Parts Per Million

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PPV	Public-Private Venture
PWD	Public Works Division
QRP	Qualified Recycling Program
RACM	Regulated Asbestos-Containing Material
RCRA	Resource Conservation and Recovery Act
RCRS	Resource Conservation and Recovery Section
ROICC	Resident Officer in Charge of Construction
RRP	Renovation, Repair, and Painting
SAA	Satellite Accumulation Area
SARA	Superfund Amendments & Reauthorization Act
SDS	Safety Data Sheet
SHPO	State Historic Preservation Officer
SPCC	Spill Prevention Control and Countermeasures
SSPP	Strategic Sustainability Performance Plan
SWDA	Solid Waste Disposal Act
SWPPP	Stormwater Pollution Prevention Plan (Also referred to as SPPP in NC)
T&P	Treatment and Processing
TCLP	Toxic Characteristic Leaching Procedure
TSD	Treatment, Storage, and Disposal
TSI	Thermal System Insulation
ULCP	Unit Level Contingency Plan
USC	United States Code
USACE	United States Army Corps of Engineers
USMC	United States Marine Corps
UW	Universal Waste

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UXO Unexploded Ordnance

XRF X-Ray Fluorescence

CONTRACTOR'S PHONE DIRECTORY

In the event of an emergency, refer to the emergency numbers below. All non-emergency contractor inquiries regarding the operations at Marine Corps Base (MCB) Camp Lejeune and Marine Corps Air Station New River should be directed to the Resident Officer in Charge of Construction (ROICC) or Contract Representative. The ROICC or Contract Representative will either directly contact or refer contractors to the appropriate Division or Organization.

Emergency and Important Non-Emergency Numbers

Fire and Emergency Services Division.....	911
Ambulance.....	911
Hearing Impaired.....	(910) 451-4444
CHEMTREC (Emergency 24-hour/Outside MCB Camp Lejeune).....	(800) 424-9300
Hazardous Chemical Spill.....	911
Military Police.....	911
National Response Center (Outside MCB Camp Lejeune).....	(202) 372-2428
Toll Free.....	(800) 424-8802
Provost Marshall Office.....	911

Marine Corps Base Camp Lejeune

Operator/ Directory Assistance.....	(910) 451-1113
Confined Space Program Manager.....	(910) 451-5725
Environmental Management Division.....	(910) 451-5003
-Environmental Compliance Branch.....	(910) 451-5837

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Asbestos Management	
Resource Conservation and Recovery Section	(910) 451-1482
Hazardous Material Consolidation Site/Free Issue	(910) 451-1482
Recycling Center, Building 982	(910) 451-4214
-Environmental Conservation Branch	(910) 451-5063
Fish & Wildlife	
Forestry Management	
NEPA	
Conservation Law Enforcement	(910) 451-2196/5226
-Environmental Quality Branch	(910) 451-5068
Air Quality	
Underground Storage Tanks	
Water Quality	
Explosives and Ordnance Disposal	(910) 451-0558
Public Works Division	(910) 451-5307
-Construction Project Managers	(910) 451-2583
-Contracts Branch	(910) 451-2582
-Officer In Charge of Construction (Main)	(910) 451-2581
-Public Works Base Utility Director	(910) 451-5024
Water Line Break/Wastewater Line Break	(910) 451-7190 (x225)
-Public Works Solid Waste Division/Landfill	(910) 451-2946
Range Control	(910) 451-3064
Regional Geospatial Information & Services (Installation Manager)	(910) 451-8915
Safety Department	(910) 451-5725

Marine Corps Air Station New River

Confined Space Program.....	(910) 449-4964
Consolidated Hazardous Material Reutilization and Inventory Management Program.....	(910) 449-4531/4533
Environmental Affairs Department (Director).....	(910) 449-5441
-Environmental Affairs Department (Environmental Manager).....	(910) 449-5442
-Environmental Affairs Department (GIS Manager).....	(910) 449-6144
-Environmental Affairs Department (Hazardous Waste).....	(910) 449-5997
-Conservation Law Enforcement.....	(910) 449-0108
Explosives Safety Officer.....	(910) 449-5443
Military Police (Non-Emergency).....	(910) 449-4248/4249
Public Works Division.....	(910) 449-6506
-Officer In Charge of Construction.....	(910) 449-5587
Safety Department.....	(910) 449-4527

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1.0 CONTRACTOR ENVIRONMENTAL GUIDE OVERVIEW

Environmental protection is an integral part of the Marine Corps mission in order to protect public health, preserve environmental quality, comply with regulatory requirements, and develop and strengthen relationships between the Marine Corps community and external stakeholders. The purpose of the MCB Camp Lejeune Contractor Environmental Guide is to assist contractors working aboard Marine Corps Installations East's (MCIEAST's) Marine Corps Base (MCB) Camp Lejeune and Marine Corps Air Station (MCAS) New River in maintaining the mission by complying with Federal and State environmental laws and regulations, as well as the United States Marine Corps (USMC) and installation environmental policies. This guide is written in accordance with Marine Corps Order (MCO) P5090.2A and designed to answer many of the environmental questions that arise, as well as to provide pertinent information on environmental topics and training requirements.

This document should be used only as a *guide* to the environmental issues contractors may face while working aboard MCB Camp Lejeune and MCAS New River.

NOTE: This document should be used only as a guide to the environmental issues contractors may face while working

aboard MCB Camp Lejeune and MCAS New River. It is expected that contractors will work closely with the Environmental Management Division (EMD) at MCB Camp Lejeune, the Environmental Affairs Department (EAD) at MCAS New River, and Contract Representatives regarding environmental management issues, concerns, and/or questions. Should the need arise, this guide provides

**Contact the ROICC
or Contract
Representative
with any
questions.**

contractors with EMD, EAD, and emergency response points of contact (POCs). All initial inquiries should be directed to the Resident Officer in Charge of Construction (ROICC) or Contract Representative, who will either direct the contractor

or contact the appropriate environmental office if additional clarification regarding an environmental issue is necessary.

NOTE: It is very important to note that this guide is designed to provide requirements specific to MCB Camp Lejeune-issued contracts. It is the contractor's responsibility to know and comply with all Federal, State, and local regulations. MCB Camp Lejeune environmental personnel will assist contractors with compliance issues; however, the primary burden of regulatory identification, familiarity, and compliance lies with the contractor. This training **does not** replace any required regulatory environmental training or certification as per contract requirements. All required environmental training should be completed **prior** to working at MCIEAST installations.

NOTE: It is the contractor's responsibility to review the project-specific contract and specifications. Additional environmental requirements, submissions, and/or meetings not documented in this guide may be required.

1.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are used throughout this guide. If you have any questions about these definitions or concepts, please consult the ROICC or Contract Representative, who will contact the appropriate environmental office if additional clarification is necessary.

1.1.1. Key Definitions

- **Environment.** Surroundings, to include all surface water, groundwater, drinking water supply, land surface or subsurface area, or ambient air within the United States or under the jurisdiction of the United States, including manmade structures, indoor air environments, natural resources, and archeological and cultural resources.
- **Environmental Management Division.** MCB Camp Lejeune's division responsible for environmental issues and compliance at MCB Camp Lejeune.
- **Environmental Affairs Department.** MCAS New River's department responsible for environmental issues and compliance at MCAS New River.
- **Environmental Management System (EMS).** A systematic approach for integrating environmental

considerations and accountability into day-to-day decisionmaking and long-term planning processes across all missions, practices, and functions. The EMS institutionalizes processes for continual environmental improvement and reducing risks to mission through ongoing planning, review, and preventive or corrective action.

1.1.2. Key Concepts

- **Environmental Requirement.** A defined standard pertaining to environmental compliance, pollution prevention (P2), or natural/cultural resources, subject to uniform application. Environmental requirements may be in the form of a law, regulation, Executive Order (EO), policy, ordinance, permit, Base Order (BO), or other form that prescribes a standard.
- **Executive Order.** Legally binding orders given by the President, as head of the Executive Branch, to direct Federal agencies and officials in their execution of congressionally established laws or policies.
- **MCB Camp Lejeune.** Throughout this document, MCB Camp Lejeune includes all MCB Camp Lejeune real property and contracts for work performed at MCAS New River and all outlying fields associated with MCB Camp Lejeune.
- **Marine Corps Order.** A directive of continuing authority or information, meant to be a permanent reference and requiring continuing action, issued by Headquarters Marine Corps (HQMC). In accordance

with MCO 5215.1K (10 May 2007), all MCOs shall, where applicable: establish, describe, or change existing policy, programs and major activities, and organizations; define missions; assign responsibilities; issue procedural guidance; and be written in standardized format.

- **Resident Officer In Charge of Construction.** The ROICC administers construction contracts and is the contractor's first line of contact with the government.
- **Regulatory Requirements.** Government (including Federal, State, and local) environmental regulations implemented by environmental statutes. Federal regulations often establish minimum standards for State and local governments' implementing programs.
- **Statutory Requirements.** Federal environmental statutes are laws that generally require compliance by U.S. Department of Defense (DoD) installations.

1.2. INSTALLATION BACKGROUND

MCB Camp Lejeune was established in 1941 in Onslow County, along the southern coast of North Carolina (NC). MCB Camp Lejeune is just south of MCAS New River. MCB Camp Lejeune takes advantage of 156,000 acres and 11 miles of beach capable of supporting amphibious operations, 32 gun positions, 48 tactical landing zones, three state-of-the-art training facilities, and 80 live fire ranges for its training mission.

The primary function of MCB Camp Lejeune is national defense, providing a home installation for the II Marine Expeditionary Force (MEF), 2nd Marine Division, 2nd Force Service Support Group, and other combat units and support commands. MCB Camp Lejeune's mission is to maintain combat-ready units for expeditionary deployment. MCB Camp Lejeune maintains and utilizes supply warehouses, maintenance shops, hazardous material storage, nonhazardous and hazardous waste storage, bulk fuel storage and transfer facilities, fleet parking, housing areas, recreational areas, two golf courses, and a marina.

MCAS New River is the principal USMC helicopter operating location on the East Coast and supports aircrew training in the H-53 helicopter. It is also the evaluation and prospective bed-down site for the V-22 Osprey. The mission of MCAS New River is to provide the necessary support for its Marine Aircraft Group (MAG) tenant units, MAG-26 and MAG-29.

1.2.1. Environmental Management Division and Environmental Affairs Department

MCB Camp Lejeune's EMD, within the Installation and Environment Department, is responsible for all natural resource and environmental matters aboard the installation. EMD works closely with MCB Camp Lejeune personnel, educating and training them to comply with environmental laws while accomplishing the military mission.

The EAD at MCAS New River works closely with the EMD on environmental compliance and protection matters. Due to

various joint operations, MCB Camp Lejeune and MCAS New River participate together in one EMS. See Figure 1-1 and Figure 1-2 for organization charts of EMD and EAD.



Figure 1-1. Environmental Management Division (MCB Camp Lejeune) Organization Chart



Figure 1-2. Environmental Affairs Department (MCAS New River) Organization Chart

1.2.2. Expectations

Contractors aboard the installation, which are committed to strict compliance with environmental laws and regulations,

assist MCB Camp Lejeune in providing the best possible training facilities for today's Marines and Sailors, while honoring our environmental responsibilities and objectives. Violation of environmental laws may result in severe civil or criminal penalties and fines.

1.3. OVERVIEW OF REQUIREMENTS

Contractors operating aboard MCB Lejeune and MCAS New River must be aware of and adhere to all applicable environmental regulations and requirements, which include but may not be limited to the following:

- **EO 12088, Federal Compliance with Pollution Control Standards (October 13, 1978).** Requires all facilities owned by or leased to or by the military to be designed, operated, and maintained in compliance with all applicable environmental standards. Military and civilian personnel must cooperate with Federal, State, and local environmental protection agencies and comply with applicable standards and criteria issued by these agencies to the extent permitted by law.
- **EO 13423, Strengthening Federal Environmental, Energy, and Transportation Management.** Requires Federal agencies to comply with applicable Federal, State, local, and host nation environmental laws and regulations. Additionally, requirements include more widespread use of EMSs as the framework for sustainability management.

- [EO 13514, Federal Leadership in Environmental, Energy, and Economic Performance.](#) Requires Federal agencies to meet various sustainability goals, to include the reduction of greenhouse gas emissions. Applicable provisions for meeting these goals are to be included in acquisition and service contracts.
- [MCO P5090.2A, Environmental Compliance and Protection Manual \(26 August 2013\).](#) USMC policies and responsibilities for compliance with environmental statutes and regulations, as well as the management of USMC environmental programs.

1.3.1. Contractor Environmental Guide

This guide consists of the following information:

- MCB Camp Lejeune Contractor Environmental Guide
 - o EMS overview and requirements
 - o Environmental program-specific requirements
- MCB Camp Lejeune General EMS and Environmental Awareness Training for Contractors and Vendors
- Signature Page

Prior to beginning work onsite, or within 30 days of beginning work onsite, all contractors and their employees performing work aboard MCB Camp Lejeune must review these materials and complete EMS and General Environmental Awareness training.

Prior to beginning work onsite, or within 30 days of beginning work onsite, all contractors and their employees performing work aboard MCB Camp Lejeune must review these materials and complete EMS and General Environmental Awareness training. This guide summarizes the EMS and environmental programs at MCB Camp Lejeune, as well as key requirements associated with the various environmental issues contractors may encounter while performing work aboard the installation.

Contractors are expected to work with their ROICC or Contract

Representatives and EMD/EAD when environmental concerns or issues arise.

1.3.2. Environmental and EMS Training

In accordance with Department of Defense (DoD) instructions and MCOs, EMD has implemented a Comprehensive Environmental Training and Education Program (CETEP). The goal of the CETEP is to ensure that appropriate environmental instruction and related information are provided to all levels of the Marine Corps in the most effective and efficient manner to achieve full compliance with all applicable environmental training

requirements. A major component of the CETEP is to provide general environmental awareness training to all individuals associated with the installation, including contractors.

In addition to CETEP requirements, MCB Camp Lejeune has implemented an installation-wide EMS. The EMS highlights the fact that the authority and principal responsibility for controlling environmental impacts belong to those commands, units, offices, and personnel (including contractors) whose activities have the potential to impact the environment.

All contractors are required to receive both EMS and general environmental awareness training at the level necessary for their job function.

All contractors are required to receive both EMS and general environmental awareness training at the level necessary for their job function. This guide satisfies these training requirements (See the Appendix).

As such, contractors working aboard MCB Camp Lejeune will do the following:

- Conduct job responsibilities in compliance with environmental regulations and in conformance with EMS requirements.
- Complete all applicable environmental training and maintain associated records as per contract requirements.

- Complete EMS and general environmental awareness training, and be aware of and understand the MCB Camp Lejeune Environmental Policy.
- Contact their ROICC or Contract Representative immediately regarding environmental and/or EMS issues.

Prior to beginning work onsite or within 30 days, all contractors must sign and date the signature page and return it to the installation Contract Representative. Anyone who works on a contract at any point during the contract period must receive this information and training.

1.4. POINTS OF CONTACT

EMD Branches and phone numbers are found in the Contractor's Phone Directory on pages xv and xvi of this Guide. All initial inquiries regarding an environmental issue should be directed to the ROICC or Contract Representative, who will either directly contact or refer the contractor to the appropriate environmental office if additional clarification is necessary. In the case of a spill or environmental emergency, immediately dial 911. Additional emergency response procedures are provided in Section 5.0 of this Guide.

Table 1-1. Contacts in Case of a Spill

For spills of:	Call:	Follow-up:
Hazardous waste	911	Spill Report
Unknown materials	911	Spill Report
Material on a permeable surface	911	Spill Report
Any amount of a POL or Hazardous Material	911	Spill Report
Material that reaches stormwater inlets or waterways	911	
Nonhazardous waste	(910) 451-1482	911

1.5. OVERVIEW MAP

Figure 1-3 provides an overview map that displays the locations of installation facilities discussed throughout this Guide.



Figure 1-3. Overview Map

2.0 ENVIRONMENTAL MANAGEMENT SYSTEM

Three key principles of the Environmental Policy are to comply with relevant environmental laws and regulations, prevent pollution, and continually improve our EMS.

MCB Camp Lejeune and MCAS New River jointly operate an EMS, which provides a systematic way of continually implementing environmental requirements and evaluating performance. The EMS is founded on the principles of MCB Camp Lejeune's Environmental Policy, which is endorsed by the Commanding General (CG). Three key principles of the Environmental Policy are to:

- Comply with relevant environmental laws and regulations;
- Prevent pollution; and
- Continually improve the EMS.

The EMS promotes sustained mission readiness through actively identifying and implementing opportunities for efficient resource use. The USMC implements EMS at all levels to continually improve environmental compliance programs and meet evolving EOs and DoD requirements for mission sustainability. The EMS highlights the fact that the authority and principal responsibility for controlling environmental impacts belong to those commands, units,

offices, and personnel (including contractors and vendors) whose activities have the potential to impact the environment.

2.1. KEY DEFINITION AND CONCEPTS

The following key definitions and concepts are associated with an EMS. Please consult the ROICC or Contract Representative with any questions about these definitions or concepts.

**Please consult the
ROICC or Contract
Representative
with any
questions.**

2.1.1. Key Definitions

- **Environment.** Surroundings in which an organization operates, including air, water, land, natural resources, flora, fauna, humans, and their interrelation.
- **Environmental Aspect.** A characteristic of an organization's activities, products, or services that may cause, in normal operation or upset mode, an impact to an environmental or other resource. Each practice may have several aspects.
- **Environmental Impact.** An effect, beneficial or adverse, of a practice's aspect on an environmental or other resource. Each practice may have several impacts.
- **Environmental Resources.** Sensitive environmental receptors (e.g., air, water, natural

resources) or cultural or historic assets at MCB Camp Lejeune or MCAS New River, in the surrounding community, within the ecosystem, or beyond, that may be impacted by the operation of practices.

- **Practice.** A unit process that supports a military mission and may impact environmental resources. (It is the ability to impact an environmental resource that is key to defining a practice. However, practices may also impact other resources.)
- **Practice Owner.** Person(s) responsible for control of practices. EMS procedures use the term *practice owner* when the assignment of more specific responsibilities is left to the owning organizations.
- **Requirement.** Legislation, regulation, or policy issued by any Executive, Federal, State, local, DoD, Department of Navy (DoN), or USMC authority that addresses environmental considerations and requires action.

2.1.2. Key Concepts

- **Environmental Management System.** A systematic approach for integrating environmental considerations and accountability into day-to-day decisionmaking and long-term planning processes across all missions, activities, and functions. The EMS institutionalizes processes for continual environmental improvement and for reducing risks to mission through ongoing planning, review, and preventive or corrective action.

- **Environmental Policy.** Public commitment by senior leaders to the management of the installation's environmental affairs, including environmental compliance, pollution prevention, natural/cultural resource management, cleanup, risk to mission, and continual improvement of the EMS.
- **Plan, Do, Check, Act.** Four-step model by which the EMS carries out change – **Plan:** establish objectives and processes; **Do:** implement and execute the plan; **Check:** study and analyze the results; **Act:** take action based on what you learned.

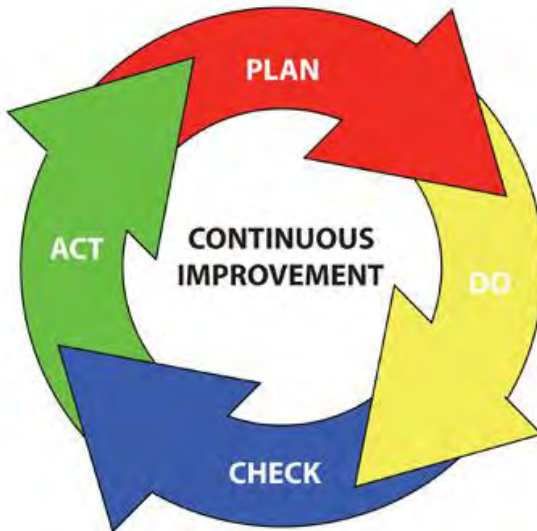


Figure 2-1. Plan, Do, Check, Act Cycle

2.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard MCB Camp Lejeune and MCAS New River must be aware of and adhere to all applicable regulations and requirements concerning EMS, which include but may not be limited to the following:

- **EO 13148, Greening the Government Through Leadership in Environmental Management.** Mandates that environmental management considerations must be an integral component of Federal Government policies, operations, planning, and management, with the primary goal for each agency to promote the sustainable management of Federal facility lands through the implementation of cost-effective, environmentally sound practices, and programs to reduce adverse impacts to the natural environment.
- **EO 13423, Strengthening Federal Environmental, Energy, and Transportation Management.** Establishes the EMS as the primary management approach for addressing environmental aspects, including energy and transportation aspects, and as the reporting mechanism for communicating progress on meeting performance goals.
- **EO 13514, Leadership in Environmental, Energy, and Economic Performance.** Requires continuing implementation of formal EMSs at all appropriate organizational levels to support the sustainability performance requirements of the Order.

2.3. ENVIRONMENTAL MANAGEMENT SYSTEM

An EMS is a systematic way to identify and eliminate or minimize the installation's environmental risk-to-mission. MCB Camp Lejeune's EMS identifies practices and their aspects as a starting point for prioritizing environmental management initiatives. Each installation practice, such as construction/renovation/demolition, equipment operation/maintenance/disposal, landscaping, or pesticide/herbicide management and application, has one or more environmental aspects. Figure 2-2 illustrates the simplified potential interactions of one practice, construction/renovation/demolition, with the environment.



Figure 2-2. Potential Interactions of Construction and Demolition Activities with the Environment

2.4. EMS RESPONSIBILITIES

Contractors are expected to understand that the practices they support on the installation may interact with and have the potential to impact the environment. Therefore, it is expected that contractors will do the following:

- Review the Contractor Environmental Guide.
- Be aware of the Environmental Policy (Attachment 2-1).
- Conduct practices in a way that avoids and/or minimizes impacts to the environment by complying with all applicable Federal, State, and local environmental regulations and BOs.
- Be familiar with spill response procedures.
- Report all environmental emergencies and spills.
- Report any environmental problems or concerns promptly, and notify the ROICC or Contract Representative.
- Respond to data collection efforts upon request.

Contractors are expected to understand that the activities performed on the installation may interact with the environment and have the potential to impact the environment.

2.5. CONTRACTOR ENVIRONMENTAL GUIDE AND EMS

The sections of this Contractor Environmental Guide are categorized based on the type of environmental requirements routinely encountered by contractors at MCB Camp Lejeune. The following matrix is derived from MCB Camp Lejeune's EMS Working Group sessions and relates the contents of this guide to the practices aboard MCB Camp Lejeune. It is provided to assist contractors in narrowing down specific requirements that may apply to onsite activities.

CAMP LEJEUNE CONTRACTOR ENVIRONMENTAL GUIDE FINAL

**Table 2-1. Practices Identified Under MCB Camp Lejeune's
EMS**

MCB Camp Lejeune 2015 Practices		Env. Emergency Response/ Spill Response, Section 5.0	HM/HW, Section 7.0	Potential Discovery of Undocumented Contaminated Sites, Section 13.0		Asbestos, Section 8.0	Lead-Based Paint, Section 9.0	Stormwater, Section 11.0	Solid Waste, Recycling, and P2, Section 12.0	Training, Section 3.0	Cultural Resources, Section 6.0	Permitting, Section 14.0	Air Quality, Section 4.0	Natural Resources, Section 10.0
Applicable to All Practices Conducted Aboard MCB Camp Lejeune			●						●					
Battery management		●												
Boat operation/ maintenance		●											●	
Boat, ramp, dock cleaning			●					●					●	
Boiler operation			●											
Building operation/ maintenance/ repair		●		●		●			●					
Channel dredging			●					●						
Chlorination			●										●	
Composting								●	●					
Construction/demo/ renovation					●		●	●	●		●			
Cooling tower operation and maintenance			●											
De-greasing			●										●	
Drinking water management			●											
Engine operation and maintenance			●										●	
Equipment operation/ maintenance/disposal			●		●				●					
Erosion/ runoff control								●						●
Fish stocking														
Applicable to All Practices Conducted Aboard MCB Camp Lejeune														

CAMP LEJEUNE CONTRACTOR ENVIRONMENTAL GUIDE FINAL

MCB Camp Lejeune 2015 Practices	Env. Emergency Response/ Spill Response, Section 5.0	HM/HW, Section 7.0	Potential Discovery of Undocumented Contaminated Sites, Section 13.0	Asbestos, Section 8.0	Lead-Based Paint, Section 9.0	Stormwater, Section 11.0	Solid Waste, Recycling, and P2, Section 12.0	Training, Section 3.0	Cultural Resources, Section 6.0	Permitting, Section 14.0	Air Quality, Section 4.0	Natural Resources, Section 10.0
Fueling and fuel mgt./ storage	Applicable to All Practices Conducted Aboard MCB Camp Lejeune	●	Applicable to All Practices Conducted Aboard MCB Camp Lejeune			●	●	Applicable to All Practices Conducted Aboard MCB Camp Lejeune			●	
Grease traps												
Habitat management		●									●	●
HCP operation		●										
HM storage		●				●					●	
HM transportation		●					●				●	
HW disposal offsite transport		●					●					
HW satellite accumulation area		●									●	
HW storage (<90 days)		●										
HW transportation		●		●	●						●	
Land clearing						●	●		●			●
Landfill gas energy recovery system												
Landscaping		●				●						
Laundry		●										
Live fire range operation		●				●					●	●
Livestock operation						●	●					
Metal working	Applicable to All Practices Conducted Aboard MCB Camp Lejeune	●	Applicable to All Practices Conducted Aboard MCB Camp Lejeune				●	Applicable to All Practices Conducted Aboard MCB Camp Lejeune			●	
Non-destructive inspection		●										
ODS/ halon management		●										
Packaging/unpack-aging							●					

CAMP LEJEUNE CONTRACTOR ENVIRONMENTAL GUIDE FINAL

MCB Camp Lejeune 2015 Practices	Env. Emergency Response/ Spill Response, Section 5.0	HM/HW, Section 7.0	Potential Discovery of Undocumented Contaminated Sites, Section 13.0	Asbestos, Section 8.0	Lead-Based Paint, Section 9.0	Stormwater, Section 11.0	Solid Waste, Recycling, and P2, Section 12.0	Training, Section 3.0	Cultural Resources, Section 6.0	Permitting, Section 14.0	Air Quality, Section 4.0	Natural Resources, Section 10.0
Paint booth	Applicable to All Practices Conducted Aboard MCB Camp Lejeune		Applicable to All Practices Conducted Aboard MCB Camp Lejeune					Applicable to All Practices Conducted Aboard MCB Camp Lejeune			●	
Paint gun cleaning		●									●	
Paint removal		●			●		●				●	
Painting		●					●				●	
Parts replacement		●		●			●					
Pesticide/herbicide mgt. and application		●				●						
Polishing		●					●				●	
Pumping station/ force main		●										
Range residue clearance		●				●	●					
Recreational facilities operation		●					●					
Road construction and maintenance						●	●		●	●	●	●
Rock-crushing operations							●				●	
Roofing kettle		●										
Sewers		●				●			●			
Sidewalk and road deicing												
Soil excavation/grading						●			●			●
Solid waste collection/transportation							●				●	
Storage tank management		●					●				●	

CAMP LEJEUNE CONTRACTOR ENVIRONMENTAL GUIDE FINAL

MCB Camp Lejeune 2015 Practices		Env. Emergency Response/ Spill Response, Section 5.0	HM/HW, Section 7.0	Potential Discovery of Undocumented Contaminated Sites, Section 13.0	Asbestos, Section 8.0	Lead-Based Paint, Section 9.0	Stormwater, Section 11.0	Solid Waste, Recycling, and P2, Section 12.0	Training, Section 3.0	Cultural Resources, Section 6.0	Permitting, Section 14.0	Air Quality, Section 4.0	Natural Resources, Section 10.0
Stormwater collection/ conveyance	Applicable to All Practices Conducted Aboard MCB Camp Lejeune			Applicable to All Practices Conducted Aboard MCB Camp Lejeune			●		Applicable to All Practices Conducted Aboard MCB Camp Lejeune				
Surface washing													
Swimming pool operation and maintenance			●										
Timber management													
Universal waste storage/ collection			●										
Urban wildlife management	Applicable to All Practices Conducted Aboard MCB Camp Lejeune			Applicable to All Practices Conducted Aboard MCB Camp Lejeune				●	Applicable to All Practices Conducted Aboard MCB Camp Lejeune				●
UXO/EOD operations			●										
Vehicle maintenance			●					●				●	
Vehicle parking							●						
Wash rack							●						

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Attachment 2-1
MCB Camp Lejeune's Environmental
Policy Statement

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COMMANDING GENERAL'S ENVIRONMENTAL POLICY STATEMENT

The protection and enhancement of our natural environment is a valuable tool in sustaining the training and support mission of Marine Corps Installations East-Marine Corps Base Camp Lejeune (MCIEAST-MCB CAMLEJ). As MCIEAST-MCB CAMLEJ prepares for the increasing demands on facilities, training areas, ranges, and quality-of-life services that support the readiness of our forces, we are committed to protecting human health, conserving natural and cultural resources, and complying with regulatory requirements.

The MCIEAST-MCB CAMLEJ Environmental Management System (EMS) promotes sustained mission readiness through actively identifying and implementing solutions and opportunities for efficient resource use. Through the EMS, MCIEAST-MCB CAMLEJ will continually assess daily operations in order to identify and implement improvements to its practices that will ensure compliance with governing regulations and meet the sustainability objectives of Executive Orders 13514 and 13423. In this endeavor, MCIEAST-MCB CAMLEJ will:

- Continue proactive compliance with all environmental laws, regulations, and U. S. Marine Corps policies.
- Integrate natural and cultural resource management with the military mission whenever practical.
- Incorporate sound environmental practices into all of our operations and business decisions.
- Implement pollution prevention initiatives, waste diversion, recycling, and waste minimization programs.
- Assess and remediate contaminated sites aboard the Base that are the result of past disposal practices or spills and leaks of hazardous materials.
- Implement energy efficiency and water conservation management projects.
- Procure sustainable products, including biobased, environmentally preferable, energy efficient, water efficient, and recycled-content products.
- Collaborate with local communities and regulatory agencies to enhance stewardship of the environment, create goodwill and build trust.
- Educate our Marines, Sailors, and Civilian Marines about their responsibility to protect our natural environment, stressing the important role each individual plays in an effective EMS.

Join me in applying these environmental management principles to protect and enhance our natural environment, while strengthening the combat readiness of our forces and the quality-of-life services to our warriors and their families.

A handwritten signature in black ink, reading "R. F. Castellvi".

R. F. CASTELLVI
Brigadier General, U.S. Marine Corps
Commanding General

Marine Corps Installations East-Marine Corps Base Camp Lejeune

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3.0 TRAINING

To minimize the environmental impact of MCB Camp Lejeune operations, all contractors are required to receive both EMS and general environmental awareness training at the level necessary for their job function.

The contractor is responsible for ensuring that every employee completes a program of classroom instruction or on-the-job training that teaches the employee to perform his or her duties in compliance with Federal, State, and local regulatory requirements.

To minimize the environmental impact of MCB Camp Lejeune operations, all civilian and military personnel, including contractors, are required to

receive both EMS and general environmental awareness training at the level necessary for their job function. Use of the Contractor Environmental Guide satisfies these training requirements. A training presentation is provided in the Appendix.

NOTE: The contractor is responsible for knowing and complying with Federal, State, and local regulations. MCB Camp Lejeune environmental personnel will assist contractors with compliance issues; however, the primary burden of regulatory identification, familiarity, and compliance lies with the contractor. This training *does not*

replace any required regulatory training as per contract requirements. Required training should be completed *prior* to working at MCB Camp Lejeune.

3.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with contractor training. If you have any questions or concerns about the information in this section, please consult the ROICC or Contract Representative, who will contact the appropriate environmental office if additional clarification is necessary.

Please consult the ROICC or Contract Representative with any questions or concerns about the information in this section.

3.1.1. Key Definitions

- **Explicitly Required Training.** Training expressly required by specific laws, regulations, or policies that apply due to the nature of work assignments, job functions, and/or specific licensing or certification requirements mandated by environmental laws, regulations, or policies.
- **Implicitly Required Training.** Instruction/information that is not expressly required by laws, regulations, or policies, but that may be reasonably inferred as being required to maintain compliance or is determined through EMS to reduce overall environmental risk.

3.1.2. Key Concepts

- **Comprehensive Environmental Training and Education Program (CETEP).** The USMC training program designed to ensure that high-quality, efficient, and effective environmental training, education, and information are provided at all levels of the USMC.
- **Environmental Management System (EMS).** The part of the overall management system that includes organizational structure, planning activities, responsibilities, practices, procedures, processes, and resources for developing, implementing, achieving, reviewing, and maintaining the Environmental Policy.
- **EMS Training.** All contractors are required to receive EMS training at the level necessary for their job function.
- **General Environmental Awareness Training.** Instruction designed to ensure that MCB Camp Lejeune and MCAS New River personnel become familiar with the installation environmental policies and programs for regulatory compliance, natural resource conservation, P2, and environmental protection. General EMS and Environmental Awareness Training for contractors and vendors is required for all MCB Camp Lejeune contractors. The training presentation is included as an Appendix to this document.

3.1.3. Environmental Management System

Training is potentially applicable to all EMS practices conducted aboard MCB Camp Lejeune.

3.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard MCB Lejeune and MCAS New River must be aware of and adhere to all applicable regulations and requirements concerning training, which include but may not be limited to the following:

- [Executive Order 13423](#). Strengthening Federal Environmental, Energy, and Transportation Management. Requires implementation of an EMS at all appropriate organizational levels.

3.3. TRAINING REQUIREMENTS

3.3.1. General Environmental Awareness

In accordance with DoD instructions and MCO, the EMD at MCB Camp Lejeune has implemented a CETEP. A major component of the CETEP is to provide general environmental awareness training to all individuals associated with the installation, including contractors and vendors. Prior to or within 30 days of beginning work onsite, all contractors and their employees performing work aboard

Prior to or within 30 days of beginning work onsite, all contractors are required to receive both EMS and general environmental awareness training.

MCB Camp Lejeune must receive general environmental awareness training.

3.3.2. Environmental Management System

In addition to CETEP requirements, MCB Camp Lejeune has implemented an installation-wide EMS per EO 13423, *Strengthening Federal Environmental, Energy, and Transportation Management*, and DoD and USMC EMS policy. The EMS highlights the fact that the authority and principal responsibility for controlling environmental impacts belong to those commands, units, offices, and personnel (including contractors and vendors) whose activities have the potential to impact the environment.

Prior to or within 30 days of beginning work onsite, all contractors and their employees performing work aboard MCB Camp Lejeune must receive EMS training.

3.3.3. Recordkeeping

Upon completion of the training materials included in the Appendix of the Contractor Environmental Guide, each employee must sign the Training Roster. The Contracting Representative must maintain these records in the contract file.

All training records, including other applicable environmental training, must be maintained onsite for review.

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4.0 AIR QUALITY

The Air Quality Program is responsible for ensuring that the installation complies with all applicable Federal, State, and local air quality regulations. The ROICC or Contract Representative will provide a copy of BO 5090.6A, Air Quality Management, which has additional information.

4.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with air quality. If you have any questions or concerns about the information in this section, please consult the ROICC or Contract Representative, who will contact the appropriate environmental office if additional clarification is necessary.

Please consult the ROICC or Contract Representative with any questions or concerns about the information in this section.

4.1.1. Key Definitions

- **Criteria Pollutants.** Pollutants that the U.S. Environmental Protection Agency (EPA) Administrator has determined will cause or contribute to air pollution, that may reasonably be anticipated to endanger public health and welfare, and for which air quality criteria have been established (i.e., sulfur dioxide, nitrogen oxides,

ground-level ozone, carbon monoxide, lead, and particulate matter).

- **Dust-Causing Activity.** Any activity that has the potential to generate an excess level of dust, including but not limited to construction and demolition (C&D), blasting and sanding, construction of haul roads, land clearing, or fallow fields.
- **Hazardous Air Pollutants.** Air pollutants, as identified within 42 United States Code (USC) 7412, that cause or may cause cancer or other serious health effects, such as reproductive effects or birth defects, or adverse environmental and ecological effects.
- **Ozone-Depleting Substance.** Chemicals, such as certain refrigerants, that cause depletion of the stratospheric ozone layer—primarily chlorofluorocarbons (CFCs) and hydrochlorofluorocarbons (HCFCs) and their blends.
- **Particulate Matter.** A criteria air pollutant that includes dust, soot, and other small materials that are released into and transported by air.
- **Title V Operating Permit.** Permit issued under the Clean Air Act (CAA) Amendments of 1990 for all major sources of air pollution. All emission sources at the installation must be listed on the permit.

4.1.2. Key Concepts

- **Emission Sources.** Before beginning any emitting activity, please have the ROICC or Contract

Representative contact EMD to determine whether any permitting, monitoring, reporting, testing, and/or recordkeeping requirements apply.

- **Permitted Sources.** Ensure that construction/authorization permits are in place prior to beginning construction and/or prior to the arrival onsite of new or additional emission sources (emergency generators, paint booths, etc.).

4.1.3. Environmental Management System

Contractor activities associated with air quality include the following:

- Boat operation/maintenance
- Boiler operation
- Chlorination
- Degreasing
- Engine operation and maintenance
- Fueling and fuel management/storage
- Hazardous material (HM) storage/transportation
- Hazardous waste (HW) satellite accumulation area/HW transportation
- Live fire range operations
- Metal working
- Ozone-depleting substance (ODS)/halon management

- Paint booth operations/paint gun cleaning/paint removal
- Polishing
- Road construction and maintenance
- Rock-crushing operations
- Solid waste collection/transportation
- Storage tank management
- Unexploded ordnance (UXO)/explosives and ordnance disposal (EOD) operations
- Vehicle maintenance

The potential impacts of these activities on the environment include degradation of air quality, degradation of quality of life, and depletion of nonrenewable resources.

4.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard the installation must be aware of and adhere to all applicable regulations and requirements regarding air quality, which include but may not be limited to:

- [Clean Air Act Amendments of 1990.](#) Protect human health and clean air resources by establishing standards and regulations for the control of air pollutants.
- [Title V Operating Permit.](#) Operating permit required for any major stationary source that emits or

has the potential to emit 100 tons per year or more of any criteria air pollutant and outlines the requirements to address and ensure air quality compliance.

- [**BO 5090.6A, Air Quality Management.**](#) Implements policies and procedures at the installation level that all personnel must follow in order to demonstrate compliance with the Title V permit and USMC requirements.
- [**Base Bulletin 5090, Open Burning of Vegetative Debris.**](#) Outlines procedures for conducting open burning in accordance with State regulations and installation procedures.
- [**North Carolina Department of Air Quality \(NCDAQ\) Rules.**](#) Outlines all State-specific air quality rules, control requirements, procedures for permits, and approvals contained in 15A North Carolina Administrative Code (NCAC) 02D, 02H, and 02Q applicable to North Carolina entities.

4.3. PERMIT REQUIREMENTS

The installation has a single permit, the CAA Title V Construction and Operating Permit, which includes all stationary air emission sources at the facility; therefore, all permit application submittals to the NCDAQ must be coordinated through the EMD. The NCDAQ will review and process the application and then issue a permit to construct and operate or to modify the emission source(s). A permit is required prior to the construction of any emission source. Timely submittal of the permit application is required to

obtain the final permit prior to commencing construction. The most common types of emission sources at the installation are as follows:

- Boilers
- Generators
- Engine test stands
- Surface coating/painting operations
- Paint removal (chemical and mechanical), abrasive blasting, or other surface preparation activities
- Fuel storage and fuel dispensing
- Grinding
- Woodworking
- Welding
- ODS/refrigerant recovery and recycling operations (industrial chillers, refrigerators, air conditioning compressors, cleaning agents, etc.)
- Bulk chemical and flammable materials storage

A permit is required for the construction of any emission source. Timely submittal of the permit application is necessary to ensure the permit is available before commencing construction.

4.4. ADDITIONAL ACTIVITIES OF CONCERN

Contact the ROICC or Contract Representative for additional information regarding activities that do not

necessarily require modification to the Title V permit, but that must be coordinated with or tracked by EMD or the NCDAQ. Examples of these activities include, but are not limited to, the following:

- **Use, Maintenance, and Management of Refrigerants and other ODS.** Includes installation, recovery, replacement, conversion, or service of refrigerant-containing equipment (chillers, refrigerators, air conditioning condensers, etc.). All contractors will use Best Management Practices (BMPs) during refrigerant management activities. All Heating, Ventilation, and Air Conditioning (HVAC) technicians will maintain their appropriate State-specific licenses and present them to the ROICC or Contract Representative upon request.
- **Emergency Generators.** Includes the installation and temporary use of emergency generators during electrical failures and construction activities. All contractors will coordinate with the ROICC or Contract Representative to determine if the intended generator may be exempted or must be temporarily permitted for the intended use.
- **Open Burning (e.g., right-of-way clearing, storm debris burning).** Open burning activities aboard MCB Camp Lejeune and MCAS New River must be coordinated through EMD and the Fire Department. Open burning activities are only permissible for land clearing and right-of-way maintenance when the following conditions are met:

- o The wind direction at the time the burning is initiated is away from any public transport roads within 250 feet so they are not affected by smoke, ash, or other air pollutants from the burning.
- o The location of the burning is at least 500 feet from any dwelling, group of dwellings, commercial or institutional establishment, or other occupied structure not located on the property on which the burning is conducted, unless an air curtain burner is used. If an air curtain burner is used, the regional office supervisor may grant exceptions to the setback requirements.
- o Heavy oils, asphaltic materials (e.g., shingles and other roofing materials), items containing natural or synthetic rubber, or any materials other than vegetative plant growth are not burned.
- o Initial burning must begin between 0800 and 1800. After 1800, no material may be added to the fire until 0800 the following day.
- o No fires may be started, and no vegetation may be added to existing fires, when the North Carolina Division of Forest Resources has banned burning for that area.
- o Burners that have the potential to burn more than 8,100 tons per year may be subject to Title V air quality permitting requirements.

Situations that require a regulatory exemption evaluation by the NCDAQ Regional Office

Supervisors are coordinated through EMD's Environmental Quality Branch Air Quality Program Manager. The ROICC or Contract Representative will address any additional questions or provide a copy of Base Bulletin 5090, which contains a summary of the installation's open burning requirements.

The four designated sites at MCB Camp Lejeune that are permitted for storing and/or burning storm debris are in the following areas: Mainside at the borrow pit near the Piney Green landfill, Courthouse Bay, Camp Johnson, and Camp Geiger. Only storm debris may be accumulated at these sites. EMD must notify the NCDAQ if the installation intends to burn the storm debris at one of these sites. Contact the ROICC or Contract Representative for more information.

- **Fire training outside of designated fire training pits.** State approval is required to conduct fire training outside of the designated fire training pits. First, complete the Notification of Open Burning for the Training of Firefighting Personnel form. The form is available at the following site: http://daq.state.nc.us/enf/openburn/ob_firetrain.pdf.

Before the training exercise, an accredited North Carolina Asbestos Inspector must inspect any structure to be burned to ensure that it is free from asbestos. Turn in the completed form to EMD for submittal to NCDAQ and the Division of Public Health, Health Hazards Control Unit. Contact the

ROICC or Contract Representative for additional information.

- **Dust-causing activities (e.g., concrete and rock crushing).** Wet suppression is required during the entire dust-causing operation. Ensure that an adequate water supply is available, and coordinate with the Fire and Emergency Services Division if access to a fire hydrant is necessary. Applicable wet suppression may be required during temporary concrete-crushing operations during C&D activities.
- **Noise Management.** USMC commands engaged in any activity resulting in noise emissions must comply with Federal, State, interstate, and local requirements for the control and management of environmental noise to minimize disruption to the local community. To the maximum extent practicable, personnel should limit the use of power tools, machinery, construction equipment, and other noisy devices to normal working hour

5.0 ENVIRONMENTAL EMERGENCY PLANNING AND RESPONSE

Environmental emergency planning and response can reduce injuries, protect employees, reduce asset losses, minimize downtime, and minimize environmental impacts of uncontrolled releases of pollutants to air, land, and water. The purpose of emergency planning is to prepare for, mitigate, respond to, and recover from environmental emergencies while minimizing any potential impacts to human health and the environment. Contractors operating aboard MCB Camp Lejeune must be aware of and adhere to all environmental emergency response procedures and notification requirements to minimize detrimental effects from inadvertent releases.

Procedures relating to emergencies caused by unforeseen site conditions are addressed in Section 5.0 of this guide. If an environmental emergency is identified, contact 911 immediately. Additional inquiries should be directed to the ROICC or Contract Representative.

5.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with environmental emergency response and spill response requirements. If you have any

Please consult the ROICC or Contract Representative with any questions or concerns about the information in this section.

questions or concerns about the information in this section, please consult the ROICC or Contract Representative, who will contact the appropriate environmental office if additional clarification is necessary.

5.1.1. Key Definitions

- **Berm.** A mound used to prevent the spread of a contaminant.
- **Discharge.** Any spilling, leaking, pumping, pouring, emitting, emptying, or dumping not explicitly permitted.
- **Navigable waters.** The waters of the United States and territorial seas, including waters that have been or may be used for commerce, waters subject to tidal flow, interstate waters and wetlands, and all other waters (intrastate lakes, rivers, streams, intermittent streams, flats, wetlands, sloughs, prairies, wet meadows, natural ponds, tributaries, etc.).
- **Petroleum, Oil, and Lubricant (POL).** A broad term that includes all petroleum and associated products or oil of any kind or in any form, including, but not limited to, petroleum, fuel oil, vegetable oil, animal oil, sludge, oil refuse, and oil mixed with wastes.
- **Release.** Pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping, or disposing into the environment (including the abandonment or discarding of barrels, containers, and other closed receptacles) of any hazardous

chemical, hazardous substance, or extremely hazardous substance (EHS). Releases may be aboveground, belowground, or to water.

- **Spill Event.** The reportable discharge of oil into or upon the navigable waters of the United States or adjoining shorelines in harmful quantities, as defined by the Code of Federal Regulations (CFR) in 40 CFR 110.

5.1.2. Key Concepts

- **Environmental Emergency Response Contacts.** The following table identifies the emergency contact information for various spill scenarios. In addition to these emergency response contacts, the ROICC or Contract Representative should be notified immediately after an incident.

Table 5-1. Environmental Emergency Response Contacts

For spills of:	Call:	Follow-up:
Hazardous waste	911	Spill Report
Unknown materials	911	Spill Report
Material on a permeable surface	911	Spill Report

For spills of:	Call:	Follow-up:
Any amount of a POL or Hazardous Material	911	Spill Report
Material that reaches stormwater inlets or waterways	911	
Nonhazardous waste	(910) 451-1482	911

- Contractors have containment and cleanup responsibilities following a spill, and there may be additional follow-up reporting or requirements. Contact the ROICC or Contract Representative for additional guidance.

5.1.3. Environmental Management System

Environmental planning and response are potentially applicable to all EMS practices conducted aboard MCB Camp Lejeune.

5.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard MCB Lejeune and MCAS New River must be aware of and adhere to all applicable regulations and requirements regarding emergency response

and spill response procedures, which include but may not be limited to the following:

- **Clean Air Act of 1970, Section 112r** Mandates the prevention and control of air emissions and specifies emergency planning where the potential exists for accidental release of hazardous air pollutants.
- **Clean Water Act (CWA) of 1972.** Establishes the basic structure for regulating discharges of pollutants into the waters of the United States. The CWA establishes that there should be no discharges of oil or hazardous substances into or upon the navigable waters of the United States or adjoining shorelines, which may affect natural resources under the management of the United States.
- **Comprehensive Environmental Response, Compensation, and Liability (CERCLA) Act of 1980.** Authorizes a Federal response to any release or threatened release of a hazardous substance into the environment. This act defines hazardous substances by reference to substances that are listed or designated under other environmental statutes.
- **Emergency Planning and Community Right-to-Know Act (EPCRA) of 1986, Section 304.** Establishes requirements for reporting a release to ensure a quick response by local emergency responders. Notification requirements apply to two chemical lists: the CERCLA Hazardous Substance list and the EHS list. The “List of Lists” provides a comprehensive identification of hazardous

substances and EHSs. In addition, facilities may be required to submit a list of their hazardous materials inventory maintained onsite or Safety Data Sheets (SDS) to response personnel.

- [**Oil Pollution Act \(OPA\) of 1990.**](#) Addresses oil storage at facilities and emphasizes preparedness and response activities. This act prohibits the harmful discharge of oil and hazardous substances into waters of the United States. The OPA requires contingency planning for “worst case” discharges and demonstrated response capabilities through planning, equipment, training, and exercises.
- [**Resource Conservation and Recovery Act \(RCRA\) of 1976.**](#) Protects human health and the environment from the hazards associated with hazardous waste handling, generation, transportation, treatment, storage, and disposal. Subtitle C of the RCRA requires owners and operators of hazardous waste facilities to develop comprehensive management plans that address spill prevention and cleanup.

5.3. SPILL NOTIFICATION

5.3.1. POL/Hazardous Materials Spill Notification Procedures

In accordance with MCB Camp Lejeune notification requirements, any discharge of oil or hazardous materials must be immediately reported to the MCB Camp Lejeune Fire Department at 911.

MCB Camp Lejeune maintains a Spill Prevention, Control, and Countermeasures (SPCC) Plan that establishes procedures to prevent oil spills and documents existing oil spill prevention structures, procedures, and equipment. The Installation SPCC Plan provides general information for any type of response actions needed for spills aboard MCB Camp Lejeune. Contractors engaged in the handling and transfer of POL or hazardous materials must develop a Unit-Level Contingency Plan (ULCP) that addresses the spill response for their specific sites and potential spill types. This ULCP must be maintained onsite, and all personnel working within that site must be made aware of its location and use.

Contractors must develop a Unit-Level Contingency Plan that addresses the spill response for their specific sites and potential spill types.

In the event of a spill, contact the ROICC or Contract Representative (after contacting emergency responders) to obtain a spill report form. Return the completed spill report form to EMD (fax to (910) 451-3471) and to the ROICC or Contract Representative. A copy of the spill report form is included as Attachment 5-1. The following information must be provided when reporting a spill:

- Name and phone number
- Location of spill (building. number, street)
- Number and type of injuries, if any
- Type and amount of spilled material

- Source of the spill (container, vehicle, etc.)
- Action being taken, if any, to control the spill
- Estimated time of spill

Do not wait to report a spill, even if all of the required information is not immediately available.

5.3.2. Wastewater Spill and Water Line Break Notification

Contractors operating aboard MCB Camp Lejeune and MCAS New River must be aware of water and wastewater utilities in their specific work/project area.

Wastewater Spills

In the event of a wastewater spill, report the incident to the Public Works Base Utilities at (910) 451-7190 (x225). In addition, report the incident immediately to the ROICC or Contract Representative. The following information must be provided:

- Name and phone number
- Location of spill (building number, street address)
- Type and amount of spilled material
- Source of the spill
- Action being taken, if any, to control the spill
- Estimated time of spill

Water Line Breaks

In the event of a water line break, report the incident to the Public Works Base Utilities at (910) 451-7190 (x225). In addition, report the incident immediately to the ROICC or Contract Representative. The following information must be provided:

- Name and phone number
- Location of spill (building number, street address)
- Reason for the break
- Estimated time of the break

5.4. FOLLOW-UP

If surface run-off is contaminated, the contractor will, under the advisement of the Fire Department or EMD, construct a temporary berm or containment area. Contaminated surface water will be removed in accordance with all safety and environmental requirements for the installation. Notify the Resource Conservation and Recovery Section (RCRS) at (910) 451-1482; the RCRS will provide concurrence for temporary containment areas and removal of contaminated runoff.

If solid or hazardous waste was generated as the result of a spill, refer to Sections 12.0 and 7.0 of this guide for disposal requirements.

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Attachment 5-1

Spill Reporting Form

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MARINE CORPS INSTALLATIONS EAST MARINE CORPS BASE CAMP LEJEUNE UNIT LEVEL SPILL FORM



Spill Date: Spill Time:

RESPONDERS

Response Initiator: Major Command:

Phone Number: Unit Name:

Fire Department Response: Responder Name:

EMD Response? Responder Name:

GPS Coordinates: X: Y:

SPILL IDENTIFICATION

Spilled Substance: State:

Source (Vehicle, drum, etc.): Building:

Estimated Amount:

Cause of Spill:

Containment/Clean-up Action Taken:

Parties Performing Spill Clean-up/Removal (EMD Turn-in Date):

Additional Assistance Required:

REPORT CERTIFICATION

Printed Name/Rank: Signature:

E-mail: Date:

All releases must be reported to the Base Fire Department by calling 911. The Environmental Management Division can be reached by calling (910) 451-1482. Units are required to maintain a copy of all completed spill forms, preferably in their ESOP Binder.

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6.0 CULTURAL RESOURCES

MCB Camp Lejeune enjoys a rich history, and remnants of our past may be found throughout the real properties that make up the installation. All personnel at MCB Camp Lejeune are responsible for ensuring the cultural resources entrusted to the USMC care remain intact and available for future generations. Contractors are responsible for notifying the ROICC or Contract Representative immediately if they encounter suspected archaeological sites, artifacts, or human remains.

6.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with cultural resource management. If you have any questions or concerns about the information in this section, please consult the ROICC or Contract Representative, who will contact the appropriate environmental office if additional clarification is necessary.

Please consult the ROICC or Contract Representative with any questions or concerns about the information in this section.

6.1.1. Key Definitions

- **Archaeological Resource.** Defined by the [Archaeological Resources Protection Act \(ARPA\)](#) as any material remains of past human life or activities

that are at least 100 years old and are capable of providing scientific or human understanding of past human behavior and cultural adaptation, including the site on which the remains are located. Examples include pottery, basketry, bottles, weapons, weapon projectiles, tools, structures or portions of structures, pit houses, rock paintings, rock carvings, intaglios, graves, human skeletal materials/remains, or any portion or piece of any of the foregoing items or structures. Non-fossilized and fossilized paleontological specimens, or any portion or piece thereof, are not considered archaeological resources unless found in an archaeological context. (According to the National Historic Preservation Act (NHPA) of 1966, some historic properties built within the past 50 years can achieve significance if they are of exceptional importance [National Register Criteria Consideration G].)

- **Cultural Resource.** A generic term for the collective evidence of the past activities and accomplishments of people, including buildings, structures, districts, sites, features, and objects of significance in history, architecture, archaeology, engineering, or culture, per [MCO P5090.2A](#).
- **Effect.** Any condition of a project that may cause a change in the quality of the historic, architectural, archaeological, or cultural character of a property that qualifies it for listing in the National Register of Historic Places (NRHP). A project is considered to have an effect on a historic or cultural property when any aspect of the project changes the integrity of the

location, design, setting, materials, workmanship, feeling, or association of the property that contributes to its significance.

- **Historic Property.** Any prehistoric or historic district, site, building, structure, or object significant in U.S. history, architecture, archaeology, engineering, or culture and included, or eligible for listing in, the NRHP, per the [NHPA](#) and [MCO P5090.2A](#).
- **State Historic Preservation Officer.** The person designated to administer the State Historic Preservation Program, including identifying and nominating eligible properties to the NRHP and administering applications for listing historic properties in the NRHP.

6.1.2. Key Concepts

- **Notification.** Contractors must notify the ROICC or Contract Representative if they encounter any cultural resources.
- **Policy.** DoD policy is to preserve significant historic and archaeological resources.

6.1.3. Environmental Management System

Contractor practices associated with cultural resources include the following:

- Construction/demolition/renovation
- Land clearing

- Road construction and maintenance
- Soil excavation/grading

The potential impacts of these activities on the environment include damage, destruction, alteration, theft, or demolition of historic properties.

6.2. OVERVIEW OF REQUIREMENTS

It is DoD policy to integrate the archeological and historic preservation requirements of applicable laws with the planning and management of activities under DoD control; to minimize expenditures through judicious application of options available in complying with applicable laws; and to encourage practical, economically feasible rehabilitation and adaptive use of significant historical resources.

Contractors operating aboard MCB Lejeune and MCAS New River must be aware of and adhere to all applicable regulations and requirements regarding cultural resources, which include but may not be limited to the following:

- [**BO 5090.8A**](#). Sets forth regulations and establishes responsibilities associated with management of archaeological and historic resources aboard MCB Camp Lejeune.
- [**Archaeological and Historic Preservation Act \(AHPA\) of 1974 \(16 USC 469 *et seq.*\)**](#) Amends the Reservoir Salvage Act to extend its provisions beyond the construction of dams to any terrain alteration resulting from any Federal construction

project or federally licensed project, activity, or program.

- [**Archeological Resources Protection Act of 1979 \(16 USC 470 et seq.\)**](#) Requires Federal land managers to issue permits for the excavation or removal of artifacts from lands under their jurisdiction. The ARPA requires that relevant Native American tribes be notified of permit issuance if significant religious or cultural sites will be affected. It prohibits the excavation, damage, alteration, theft, or defacement of an archaeological site or artifacts unless permitted by the Federal land manager.
- [**DoD Directive 4710.1, Archaeological and Historic Resources Management.**](#) Provides policy for the management of archaeological and historic resources on land and in water under DoD control.
- [**EO 11593, May 13, 1971.**](#) Requires all Federal agencies to administer cultural properties under their control. Agencies are required to direct their policies, plans, and programs so that significant sites and structures are preserved.
- [**Historic Sites, Buildings, and Antiquities Act of 1935 \(Public Law 74-292, 16 USC 461 et seq.\)**](#). States that it is Federal policy to preserve historic and prehistoric properties of national significance.
- [**National Environmental Policy Act \(NEPA\) of 1969 \(42 USC 4321 et seq.\)**](#). States that it is Federal government policy to preserve important historic, cultural, and natural aspects of our national heritage

and requires the consideration of environmental concerns during project planning and execution.

- **National Historic Preservation Act of 1966 (16 USC 470 et seq.)**. Establishes historic preservation as a national policy and requires Federal agencies undertaking actions that may affect NRHP-eligible historic properties to consult State historic preservation offices and the Advisory Council on Historic Preservation. Section 110 of NHPA requires Federal agencies to inventory, evaluate, identify, and protect cultural resources that are determined eligible for listing in the NRHP.
- **Public Buildings Cooperative Use Act of 1976 (Public Law 94-541)**. Encourages adaptive reuse of historic buildings as administrative facilities for Federal agencies.
- **Title 36 CFR Part 65, National Historic Landmarks Program**. Identifies and designates National Historic Landmarks, and encourages the long-range preservation of nationally significant properties that illustrate or commemorate the history and prehistory of the United States.

6.3. PROCEDURES

All contractors are expected to follow these procedures:

- Notify the ROICC or Contract Representative immediately concerning any encounter with suspected archaeological sites, artifacts, human remains, or any other suspected cultural resources during contractor activities.
- Stop work in the immediate area of the discovery until directed by the Contract Representative to resume work.

**Notify the ROICC
or Contract
Representative
immediately
concerning any
encounter with
suspected
archaeological
sites, artifacts, or
human remains
during contractor
activities.**

Be particularly aware of surroundings when working in a designated historic area. The Camp Lejeune Installation Geospatial Information & Services Office of the Geospatial Services Division can provide resource mapping of known cultural resource areas for all planners, project managers, contractors, and others, through formal request. The ROICC or Contract Representative will assist with making arrangements to request access for Geographic Information System mapping.

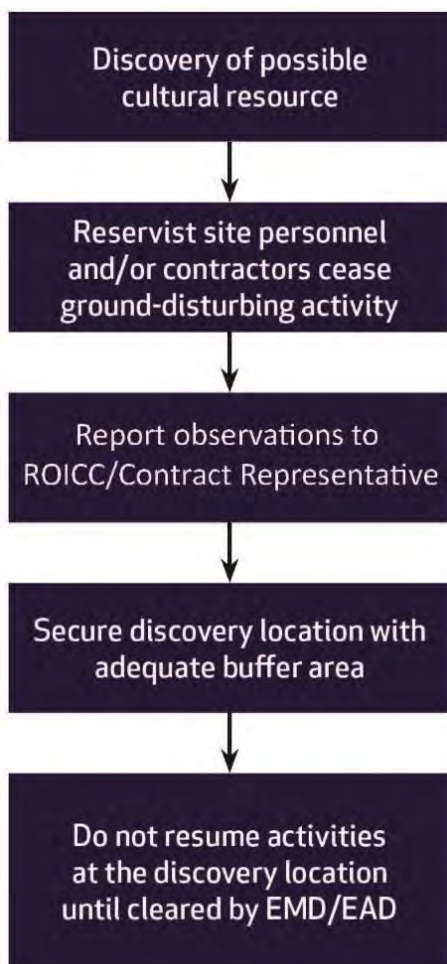


Figure 6-1. Possible Cultural Resource Discovery Flow Chart

7.0 HAZARDOUS MATERIALS/HAZARDOUS WASTE MANAGEMENT

All persons on a USMC installation are subject to compliance with Federal, State, and local regulations and permit conditions addressing the proper management of hazardous materials and waste. Mishandling these wastes and materials may result in violation notices, fines, and/or penalties. The EPA regulates hazardous wastes through the RCRA, which provides specific regulatory definitions for hazardous waste and its management. The RCRA governs all hazardous waste from the point of generation to ultimate disposal, including hazardous waste generated by contractors aboard MCB Camp Lejeune and MCAS New River. Hazardous materials, including those used by contractors aboard the installation, are also regulated by the EPCRA. Additionally, the North Carolina Department of Environmental Quality (NCDEQ) has issued more stringent rules and regulations governing hazardous materials and hazardous waste management that also apply to contractors.

7.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with hazardous materials (HM), hazardous wastes (HW), and their management. If you have any questions or concerns about the information in this section,

**Direct questions
or concerns about
the information in
this section to the
ROICC or Contract
Representative.**

please consult the ROICC or Contract Representative, who will contact the appropriate environmental office if additional clarification is necessary.

7.1.1. Key Definitions

- **90-day Accumulation Area.** These areas are used to store HW temporarily until it is either manifested and shipped off site for disposal or transferred to a permitted storage facility. HW may be accumulated for up to 90 days in these areas. MCB Camp Lejeune's 90-day accumulation facility is located on Michael Road.
- **Generator.** Any person whose activity or process produces HW or whose activity or process subjects HW to regulation.
- **Hazardous Material.** A chemical compound, or a combination of compounds, posing or capable of posing a significant risk to public health, safety, or the environment as a result of its quantity, concentration, or physical/chemical/infectious properties.
- **Hazardous Waste.** Any discarded material (including solid, liquid, or gas) or combination of discarded materials which, due to quantity, concentration, or physical, chemical, or infectious characteristics may:
 - o Cause or significantly contribute to an increase in mortality or cause a serious irreversible or incapacitating reversible illness; or

- o Pose a substantial present or potential hazard to human health or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.
- **Manifest.** A document that allows all parties involved in HW management (e.g., generators, transporters, disposal facilities, EPA, State agencies) to track the movement of HW from the point of generation to the point of ultimate treatment, storage, or disposal. All HW manifests for waste generated aboard MCB Camp Lejeune must be reviewed and released by personnel from the Resource Conservation and Recovery Section, EMD, who can be contacted at (910) 451-1482.
- **Non-RCRA-Regulated Waste.** Waste that is not regulated or is exempt from regulation under RCRA HW requirements but has other regulatory requirements for proper management.
- **Satellite Accumulation Area (SAA).** Designated areas at or near the point of generation, where HW is accumulated. Generators may accumulate up to 55 gallons of HW or one quart of acute HW at a satellite area for an indefinite amount of time. When 55 gallons of HW (or 1 quart of acute HW) are exceeded, the generator must date the container and transfer it to an approved 90-day site or long-term HW storage facility within 72 hours. EMD authorization for an SAA must be obtained and posted at the site. EMD authorization will establish individual limits for each SAA. No SAA

authorizations will exceed 55 gallons of HW or 1 quart of acute HW. In accordance with installation policy, HW in an SAA should not be stored longer than 365 days, even if the container is not full.

- **Safety Data Sheet (SDS).** A document that provides information about (1) chemical properties, environmental hazards, and health hazards; and (2) protective measures, along with safety precautions, for handling, storing, and transporting hazardous chemical products. The Hazard Communication Standard (HCS), 29 CFR 1910.1200(g), was revised in 2012 to mandate the use of a single Globally Harmonized System of Classification and Labelling of Chemicals (GHS) by manufacturers, distributors and importers to communicate information on chemical-related hazards. The information contained in the SDS is standardized in a 16-section format. Employers must ensure that the SDSs for all hazardous chemicals in the workplace are readily accessible to employees.
- **Treatment.** Any method, technique, or process designed to change the physical, chemical, or biological character or composition of any HW to neutralize the waste; or to recover energy or material resources from the waste; or to render such waste nonhazardous or less hazardous, safer to transport, store, or dispose of, or amenable for recovery or storage, or reduction in volume.
- **Treatment, Storage, and Disposal (TSD) Facilities.** TSD facilities conduct HW treatment,

storage, or disposal operations and require an RCRA part B permit for final approval to operate. The part B permit is maintained to accurately identify the most current operations at the TSD facility. MCB Camp Lejeune does not have a TSD facility.

- **Universal Waste (UW).** UW regulations streamline HW management standards for batteries, pesticides, mercury-containing equipment, and fluorescent lamps. The regulations govern the collection and management of these widely generated wastes, thus facilitating environmentally sound collection and proper recycling or treatment. In North Carolina, batteries, thermostats, obsolete agricultural pesticides, and fluorescent lamps may be managed under the UW Rule. UW must be transferred off site within 1 year of the date when the material was first identified as waste.
- **Used Oil.** Any oil that has been refined from crude oil or synthetic oil and, as a result of use, storage, or handling, has become unsuitable for its original purpose due to the presence of impurities or loss of original properties. Used oil may be suitable for further use and is economically recyclable; therefore, it is managed as a separate category of material.

7.1.2 Key Concepts

- **HW Management.** The systematic control of the collection, source separation, storage, transportation, processing, treatment, recovery, and disposal of HW. In addition, HW Management includes processes to

reduce the HW's effect on the environment and to recover resources from it.

- **HW Minimization.** The USMC policy is to reduce the quantity of HW disposed of by source reduction, recycling, treatment, and disposal. The highest priorities are reducing HW generation, and recycling. The goal of the USMC is to achieve continuous reduction of HW generation through P2 initiatives, BMPs, and use of the best available demonstrated technology.
- **National Fire Protection Association.** The U.S. trade association that creates and maintains private, copyrighted standards and codes, including the diamond hazard label in Figure 7-1, which is used by emergency personnel to quickly and easily identify the risks posed by hazardous materials.

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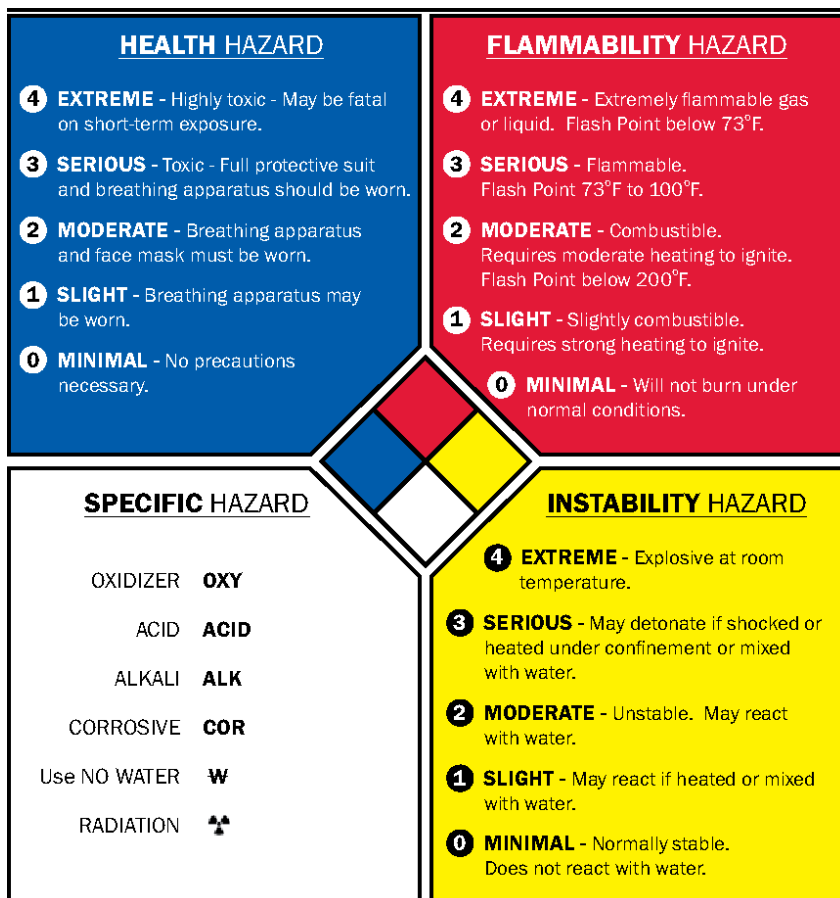


Figure 7-1. Diamond Hazard Label

7.1.3 Environmental Management System

Contractor practices associated with HM and HW management include, but are not limited to, the following:

- Battery management
- Boat operation/ maintenance
- Boiler operation
- Building operation/ maintenance/repair
- Chlorination
- Cooling tower operation and maintenance
- Construction/renovation/ demolition
- Degreasing
- Drinking water management
- Engine operation and maintenance
- Equipment operation/ maintenance/disposal
- Fueling and fuel management/storage
- Habitat management
- HCP operation
- HM storage
- HM transportation
- HW disposal offsite transport
- HW satellite accumulation area

HW storage (<90 days)
HW transportation
Laboratory
Landscaping
Laundry
Live fire range operations
Metal working
Non-destructive inspection
ODS/halon management
Paint gun cleaning
Paint removal
Painting
Parts replacement
Pesticide/herbicide management and application
Polishing
Pumping station/force main
Range residue clearance
Recreational facilities operation
Roofing kettle
Sidewalk and road deicing
Storage tank management
Swimming pool operation and maintenance

Universal waste storage/collection

UXO/EOD operations

Vehicle maintenance

The potential impacts of these activities on the environment include depletion of the HW landfill, depletion of non-renewable resources, and degradation of soil quality.

7.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard MCB Lejeune and MCAS New River must be aware of and adhere to all applicable regulations and requirements regarding HM and HW, which include but may not be limited to the following:

- [**BO 5090.9, Hazardous Material/Waste Management/Air Station Order \(ASO\) 5090.2, Environmental Compliance and Protection Program for MCAS New River.**](#) Establishes procedures and general responsibilities for the disposal of HM and HW under environmental permits and authorizations.
- [**Emergency Planning and Community Right-to-Know Act.**](#) Establishes requirements regarding emergency planning and the reporting of hazardous chemical storage and use.
- [**Hazardous Material Transportation Act \(HMTA\) of 1975.**](#) The principal Federal law regulating the transportation of HM. Established to mitigate the risks to health, property, and the environment inherent in the transportation of HM in intrastate, interstate, and foreign commerce. The HMTA is administered by the U.S. Department of Transportation (DOT) and regulates the shipping, marking, labeling, placarding, and recordkeeping requirements for HM, including HW and military munitions.

- [**Resource Conservation and Recovery Act of 1976.**](#) Establishes standards for HW generators as necessary to protect human health and the environment by instituting statutory standards for generators and transporters of HW that will ensure the following: proper recordkeeping and reporting; use of a manifest system; use of appropriate labels and containers; containerization and accumulation time; and proper management of TSD facilities. In addition, it gives the EPA and State agencies authority to access facility premises and all records regarding HW management.
- [**40 CFR Subchapter I \(Parts 260–299\), Solid Wastes.**](#) Federal regulations promulgated under the 1976 RCRA that regulate HW management, generators, transporters, and owners or operators of TSD facilities. North Carolina has adopted the Federal HW rules by reference.

Because the installation is designated as a Large Quantity Generator (LQG) of HW, all HW generated aboard MCB Camp Lejeune must meet the regulatory requirements of this generator designation. An LQG may maintain three types of HW accumulation/storage areas: satellite, 90-day, and permitted. Typically, HW is accumulated at an SAA and later transferred to a 90-day or permitted storage area.

Both MCB Camp Lejeune and MCAS New River maintain Hazardous Waste Management Plans (HWMPs) that outline the specific requirements for managing HM and HW. The HWMP identifies and provides guidance to implement all regulatory HW management activities and is available to all

personnel who accumulate, generate, transport (including on-installation transportation), treat, store, or dispose of HW.

Contractors may be required to submit a Hazardous Waste Management Plan to the ROICC or the Contract Representative prior to beginning work.

Contractors are responsible for the management of all HM and the ultimate disposition of any HW generated aboard MCB Camp Lejeune during a contract performance period. The ROICC or Contract Representative will contact Environmental personnel, who will provide additional guidance and oversight to verify compliance with applicable Federal, State, and local laws governing the generation, handling, and disposal of HM, HW, UW, used oil, petroleum-contaminated materials, RCRA-regulated HW, and non-RCRA-regulated waste.

Depending on the type of project, contractors may be required to submit a site-specific HWMP to the ROICC or the Contract Representative prior to beginning work. Additionally, the Contracting Officer may require a Contractor Hazardous Material Inventory Log and corresponding SDSs for all materials to be used during the execution of the contract. EMD/EAD will use the SDSs to help contractors establish their Hazardous Material Storage and SAAs.

7.3. HAZARDOUS MATERIALS REQUIREMENTS

If a project uses HM:

- Reduce/reuse/recycle when possible; meet contract requirements for recycling.

- Segregate incompatible materials. Consult the SDS or material manufacturers with questions about a material's compatibility. Some examples of incompatible materials likely to be used by contractors are:

Do not store large quantities of materials. Keep on hand only what can be used.

- o *Corrosives* (e.g., batteries, stripping and cleaning compounds containing acids or bases) *and* *Flammables* (e.g., fuels, oils, paints, and adhesives)
 - o *Corrosives and Oxidizers* (e.g., peroxide, perchlorates, sodium hypochlorite/bleach, or calcium hypochlorite)
 - o *Oxidizers and Flammables*
- All compatible materials should be segregated and stored within designated storage lockers or cabinets (i.e., flammable materials should be stored in designated flammable storage lockers or cabinets, and corrosives should be stored in designated corrosives storage lockers or cabinets).

- Do not store large quantities of materials. Keep on hand only what can be used.
- Maintain an inventory of all HM maintained onsite, with adequate controls in place to prevent unauthorized access.
- Do not dump any HM into floor drains, sinks, oil-water separators (OWSs), or storm drains, or onto the ground.

Stop work immediately if a project unearths a hazardous material (such as MEC/DMM/UXO) and report the situation to the ROICC or Contract Representative.

- Store containers that hold 55 gallons or more (including in-use electrical generators and portable equipment) in proper secondary containment. Permanent secondary containment must be inspected weekly, temporary secondary containment must be inspected daily; all inspections and drainage of stormwater from secondary containment must be documented.

- Maintain SDSs and appropriate spill control/cleanup materials onsite at all times.
- Provide HM storage and usage information for regulatory reporting to the appropriate environmental office upon request.
- Stop work immediately if a project unearths any unknown HM (e.g., munitions and explosives of

concern [MEC], discarded military munitions [DMM], or unexploded ordnance [UXO]), and immediately report the situation to the ROICC or Contract Representative.

- Do not leave HM (or HW) onsite once the contract is completed. Remove it from the installation or make arrangements through the ROICC or Contract Representative to contact RCRS or EAD for turn-in procedures upon completion of the contract.

7.4. UNIVERSAL WASTE REQUIREMENTS

The NCDEQ allows thermostats, obsolete agricultural pesticides, lamps, and certain types of batteries to be managed as UW. UW has less stringent requirements for storage, transport, and collection, but it must still comply with full HW requirements for final recycling, treatment, or disposal. Federal UW requirements are outlined in [40 CFR 273](#). Contact the ROICC or Contract Representative regarding any additional direction or questions on the handling of UW.

All UW must be properly containerized, stored, and labeled when the waste is first generated. Containers/areas for accumulating UW must be labeled as follows:

- Words: UNIVERSAL WASTE.
- Content: Noun name found on the specific Hazardous Waste Profile Sheet (DRMS Form 1930), which is available from EMD (e.g., *batteries*,

fluorescent lamps, pesticides, mercury-containing equipment).

- Accumulation Start Date (ASD): The ASD must be marked on the subject container as soon as the UW item is placed in the container. Storage of UW cannot exceed 365 days.
- Number of Containers: The number of containers marked reflects the total number of containers disposed of within the current document (i.e., 1 of 1, etc.).

Contractors who need UW accumulation areas should contact the ROICC or Contract Representative, who will contact RCRS or EAD personnel to help contractors establish an accumulation area for UW. Key points for this process:

- The containers must be under the control of the contractor generating the waste and must be closed at all times except when waste is being adding.
- Per installation policy, UW containers/areas must be inspected weekly using the *Weekly Hazardous Waste (HW) Site Inspection Form*, included as Attachment 7-1 and Attachment 7-2. Written records noting discrepancies and corrective actions must be maintained onsite for 3 years. Copies of inspection reports should be provided to the ROICC or Contract Representative.
- When the ASD reaches 1 year, or when the container is full, the waste generator has 72 hours (3 days) to arrange for the transportation of the UW to an RCRA

Part B permitted storage area. Contact the ROICC or Contract Representative to coordinate the removal of the UW when the container is full or the contract is finished.

7.5. HAZARDOUS WASTE REQUIREMENTS

The appropriate environmental office must be notified before any HW is generated on projects managed by the ROICC or the Facilities Support Contracts (FSC). Have the ROICC or Contract Representative contact RCRS or EAD with questions regarding whether or not a waste meets the definition of HW. Installation personnel must approve all regulated waste and HW storage locations.

The appropriate environmental office must be notified before any hazardous waste is generated on projects managed by the ROICC or the FSC.

If a project generates HW:

- Minimize generation through waste minimization and P2 techniques.
- Have the ROICC or Contract Representative contact RCRS or EAD with questions regarding how to manage the waste. Do not mix waste types (e.g., used oil rags and solvent rags).
- Have the ROICC or Contract Representative contact RCRS or EAD for turn-in procedures as wastes are

generated, to determine if waste can be disposed of on the installation.

- Do not dump any HW into floor drains, sinks, OWSs, or storm drains, or onto the ground. Do not place HW into general/municipal trash dumpsters.
- Ensure that HW drums are properly labeled and lids are secured (wrench tight).
- Ensure that SAAs are managed properly and storage limits are not exceeded; have the ROICC or Contract Representative consult RCRS or EAD prior to creating a new SAA.

7.5.1. Storage

All HW must be properly containerized, stored, and labeled at the time the waste is first generated. HW must be stored in containers that meet applicable DOT specifications. HW labels, as required by the EPA and the NCDEQ, must contain the following information:

- Words: HAZARDOUS WASTE.
- Content: Noun name found on the specific Hazardous Waste Profile Sheet (DRMS Form 1930) provided by RCRS or EAD.
- ASD: For HW accumulated in an SAA, the ASD will be affixed once the container is filled or at the 1-year anniversary, whichever comes first.
- Number of Containers: Reflects the total number of containers (e. g., 1 of 1, etc.).

Any HW generated by contractors must be stored in an SAA. Contractors who need an SAA should contact the ROICC or Contract Representative, who will contact RCRS or EAD personnel to help the contractor establish each SAA. A summary of procedures follows:

- The HW generator may accumulate as much as 55 gallons of a specific HW stream (or up to one quart of acute HW) in a container at or near the point of generation.
- The containers must be under the control of the contractor generating the waste and must be kept closed (wrench tight) at all times except when waste is being added.
- HW containers must be inspected weekly using the *Weekly Hazardous Waste (HW) Site Inspection Form*, included as Attachment 7-1 and Attachment 7-2. Written records noting discrepancies and corrective actions must be maintained for a period of 3 years. Copies of inspection reports should be provided to the ROICC or Contract Representative.
- The generating contractor must monitor the level of waste in the SAA container and contact the ROICC or Contract Representative to coordinate disposal or determine if the contractor can turn in the HW to RCRS or EAD before the container is full. If the SAA container becomes full, the generating contractor has 72 hours (3 days) to arrange for the transport of the HW to an RCRA Part B permitted

storage area. Storage of HW in an SAA should not exceed 365 days, even if the container is not full.

7.5.2. Manifesting and Disposal

All disposal of HW generated by contractors must be coordinated with the installation. HW and UW generated aboard MCB Camp Lejeune and MCAS New River must be transported off the installation by a permitted HW transporter and must include a *Uniform Hazardous Waste Manifest* form (EPA Form 8700-22) or an equivalent approved manifest. The following procedures must be followed for disposal of HW:

- Use the MCB Camp Lejeune or MCAS New River EPA identification number for disposal of all contractor-generated HW.
- HW may only be transported by authorized personnel or permitted companies. Prior to

Only personnel from EMD who have been designated in writing by the MCB Camp Lejeune Commanding General can sign the hazardous waste manifest.

transportation offsite, the HW generator must ensure that all DOT requirements for labeling, marking, placarding, and containerizing are met. The HW generator must also ensure that the transporter has obtained the installation's EPA identification number for the transportation of HW and that an appropriate waste manifest accompanies each shipment.

- The HW manifest can only be signed by personnel from the installation who have been designated in writing by the CG. The ROICC or Contract Representative should contact RCRS or EAD about manifesting regulated and non-regulated wastes offsite. Under **NO** circumstances can a contractor, ROICC, or Contract Representative sign a HW manifest or use another EPA identification number for wastes generated at the installation.
- All HW must be submitted to a permitted TSD facility. HW generators must certify that the facility receiving the waste employs the most practical and current treatment, storage, or disposal methods for minimizing present and future threats to human health and the environment.

7.6. NON-RCRA-REGULATED WASTE REQUIREMENTS

Non-RCRA-regulated wastes include used oil (when recycled), non-terne (tin and lead alloy) plated oil filters (not mixed with listed waste), CFC refrigerants (from totally enclosed equipment), certain wastes containing Polychlorinated Biphenyl (PCB), asbestos, and batteries not managed as UW.

7.6.1. Used Oil and Oil Filters

Used motor oil itself is *not* regulated as HW in North Carolina if it is recycled or burned for energy recovery. If used oil is not recycled, the generator must determine prior to disposal whether it is HW. Used oil must be collected in

drums or another approved container marked “Used Oil.” If the used oil storage container has a volume of 55 gallons or more, it must be stored in secondary containment.

- Do not dump used oil into drains, sinks, or trash containers, or onto the ground.
- Do not store used oil in open buckets or drip pans, damaged or rusted containers, or containers that cannot be fully closed.
- Do not mix used oil with other waste materials.

Terne plated oil filters contain an alloy of tin and lead. They are considered a hazardous waste due to their lead content and are typically located on industrial and heavy duty vehicles and equipment. All other used oil filters are not regulated as HW in North Carolina, as long as they are not mixed with listed HW. To qualify for this exclusion, the following conditions must be met:

- Used oil filters must be gravity hot-drained by puncturing the filter anti-drain back valve or filter dome and hot draining into a “Used Oil” storage drum. “Hot-drained” means that the oil filter is drained at a temperature that approximates the temperature at which the engine operates.
- Any incidental spillage that occurs must be cleaned up with a dry sweep, rags, or “absorbent matting.”
- Drained used oil filters must be collected in a container that is in good condition and is labeled with the words “Drained Used Oil Filters.”

- No other waste streams should be deposited in containers collecting used oil filters for disposal.
- Coordinate with the ROICC or Contract Representative to determine if the drained used oil filters can be given to RCRS or EAD.

7.6.2. Used Antifreeze

Antifreeze is composed of regulated chemicals, including ethylene glycol and propylene glycol, and during typical use may become contaminated with traces of fuel or metal particles (i.e., lead, cadmium, or chromium). It may also become HW if it has been mixed with other wastes, such as gasoline or solvents. Additional characterization may be required to determine whether or not used antifreeze is HW. Used antifreeze that is not recycled may be regulated as HW if the results from the Toxic Characteristics Leaching Procedure (TCLP) indicate metal contents that meet or exceed RCRA thresholds.

The State of North Carolina does not regulate used antifreeze as HW, as long as it is recycled by reuse, distillation, filtration, or ion exchange. Used antifreeze must be stored in closed containers on an impermeable concrete surface with adequate spill controls (secondary containment, appropriate stocked spill kits, etc.). Contact the ROICC or Contract Representative to determine if used antifreeze can be given to RCRS or EAD.

7.6.3. Petroleum-Contaminated Wipes and Oily Rags

Petroleum-contaminated wipes and oily rags are to be managed as non-regulated waste. Follow these procedures:

- Store oil-contaminated wipes and oily rags in metal containers because of their flammability/combustibility and to protect them from the weather.
- Do not throw these non-regulated waste items into solid waste dumpsters or garbage cans.
- Contact the ROICC or Contract Representative to determine if petroleum-contaminated wipes and oily rags can be given to RCRS or EAD.

7.6.4. Used Electronic Equipment

Used electronic equipment may contain lead solder or PCB oils (e.g., light ballast). Turn in these items as they are generated. Have the ROICC or Contract Representative contact RCRS or EAD for proper handling and/or turn-in procedures.

7.6.5. New and Used Batteries (Not Regulated as Universal Waste)

- Store compatible batteries together (i.e., lithium batteries should be stored with other lithium batteries).

- Store batteries off the ground to prevent them from coming into contact with water.
- Store lead-acid batteries away from an open flame.
- Place rechargeable batteries in plastic bags before storing them with other rechargeable batteries.
- Do not dispose of batteries unless authorized.
- Have the ROICC or Contract Representative contact RCRS or EAD for proper handling and/or turn-in procedures.

Attachment 7-1
Weekly Hazardous Waste (HW) Site
Inspection Form
MCB Camp Lejeune

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MCB Camp Lejeune Weekly Hazardous Waste (HW) Site Inspection Universal Waste (UW)/Satellite Accumulation Area (SAA)

Building Number/location of HW Site: _____

Unit Evaluated: _____

Evaluation Date: ____/____/____

Evaluation By (Site Manager): _____

Evaluation Time: _____

QUESTION	YES	NO	Location of Discrepancy <u>and</u> Proposed Corrective Action
1. Is housekeeping maintained in acceptable manner?			
2. Is any HW present at the site?			
3. Are HW containers properly marked?			
4. Are HW containers in serviceable condition?			
5. Are container bungs, caps, and openings properly secured?			
6. Is a unit spill plan/activation prominently posted?			
7. Is 911 spill response sign posted?			
8. Are " Danger-Unauthorized Personnel Keep Out " signs posted so they may be seen from any approach?			
9. Are " No Smoking " signs posted?			

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QUESTION	YES	NO	Location of Discrepancy <u>and</u> Proposed Corrective Action
10. Does the site have emergency communication system or two-man rule in effect? If the two-man rule is implemented, is a sign posted with the legend " Two-Man Rule in Effect "?			
11. Are properly charged fire extinguishers, as well as eye wash stations, present and inspected at least monthly?			
12. Is the post indicator valve in good operating condition and secured in the closed position, and are there any structural defects such as cracked concrete?			
13. Is the proper spill response equipment readily available?			
14. Is the site designated and recognizable, and is the EMD Authorization posted within the site as to be visible to personnel placing waste into the container? (SAA site only)			
15. Are all HWs properly segregated and stored in the designated site?			
16. Are any hazardous materials being stored in the Satellite Accumulation Area or < 90-day storage site?			

Attachment 7-2
Weekly Hazardous Waste (HW) Site
Inspection Form
MCAS New River

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CAMP LEJEUNE CONTRACTOR ENVIRONMENTAL GUIDE FINAL

Weekly Hazardous Waste Storage Area Inspection Form

Squadron: _____ **Inspector:** _____

Date: _____ **Signature:** _____

<u>Question</u>	<u>Yes</u>	<u>No</u>	<u>Corrective Actions or N/A</u>
1. Is the HW container located at or near the point of generation?			
2. Is the HW container DOT approved?			
3. Is the HW container marked correctly with the words "Hazardous Waste," correct noun name of contents, NSN'S and unit designator?			
4. Is the HW container closed and wrench tight when no one is adding to the container?			
5. If a funnel is left in place, does that funnel have a plug or ball valve to be considered closed or secured?			
6. Is the HW container in good condition? (No excessive rust or dents in critical areas, seals are in place, no bulging or collapsing and no signs of spillage or leakage)			
7. Is the Spill Contingency Plan posted and in plain view?			
8. Is the SAA Site approval letter from EAD posted at the SAA site?			
9. Is the SAA Site limited to Authorized Personnel only?			

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<u>Question</u>	<u>Yes</u>	<u>No</u>	<u>Corrective Actions or N/A</u>
10. Is the HW container below the proper ullage for a liquid to expand? (4 inches from the top)			
11. Are SAA HW containers moved to the 90-Day Site within 72 hours when filled to the proper ullage or weight capacity of the container?			
12. (90-Day Site only) Are all palletized waste streams correctly marked with "Hazardous Waste" or "Universal Waste," noun name of the waste, NSN and unit designator on the pallet or wall of the waste structure?			
13. (90-Day Site only) Are all HW containers turned in prior to the 90 th day after the ASD?			
14. Are adequate spill response supplies readily available for use in case of spill or leakage?			
15. Is there a means of emergency communication between storage facilities and working spaces?			
16. Is the SAA site or 90-Day Site in a good state of police?			

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HMUG GROUP		NAVOSHENVTRACEN COMPATIBILITY CHART			
HMUG GROUP	HCC code note 2	GROUP NAME	EXAMPLES	INCOMPATIBLE MATERIALS	REACTION IF MIXED
1	01, 02, 03, 04	ACIDS	Battery Acid Pine Removers De-Icel Spray	FLAMMABLES/ COMBUSTIBLES ALKALIS/BASES/CAUSTICS OXIDIZERS (HMUG Groups 2, 3, 4, 6, 7, 8, 10, 11, 12, 13, 14, 15, 17, 18, 19, 20, 22)	HEAT GAS GENERATION
2	P1 to P4, P4 to P4, V4, W4	ADHESIVES	Epoxy Isocyanate Chloroform/acetone	ACIDS ALKALIS/BASES/CAUSTICS OXIDIZERS (HMUG Groups 1, 3, 18)	HEAT FIRE HAZARD
3	01, 02, 03, 04	ALKALIS/BASES/CAUSTICS	Ammonia Sodium Hydroxide Caustics	ACIDS FLAMMABLES/COMBUSTIBLES DETERGENTS/SOAPS OXIDIZERS (HMUG Groups 1, 3, 5, 6, 8, 9, 10, 11, 12, 13, 14, 15, 17, 18, 19, 20, 22)	HEAT GAS GENERATION VIOLENT REACTION
4	01-04, 01-04, P2 to P4, T4, T4, V4, W4	CLEANING COMPOUNDS	Degreasers Carbon Removers Antifouling Compounds	DETERGENTS/SOAPS OXIDIZERS (HMUG Groups 1, 7, 18)	HEAT FIRE HAZARD
5	01-04, 01-04	COMPRESSED GASES	Acetylene, Propane, Nitrogen, Argon, Helium, Oxygen	HEAT SOURCES Consult paragraph C-23 for specific handling and storage guidance. (HMUG Groups 9, 10, 11, 12, 13, 14, 15)	FIRE HAZARD EXPLOSION HAZARD
6	P2 to P4, T4, V4, W4	CORROSION PREVENTIVE COMPOUNDS	Corrosion Inhibitors Chemical Converters Compounds	ACID/BASES OXIDIZERS NON-ION SOURCES (HMUG Groups 1, 3, 18, 20)	FIRE HAZARD
7	01	DETERGENTS/ SOAPS	Tricarbonyl Phosphate Scouring Powders Chloroform/acetone	ACID/BASES OXIDIZERS COMPOUNDS (HMUG Groups 1, 4, 18)	VIOLENT REACTION HEAT
8	01-04, 01-04	GREASES	Lithium Grease Silicone Molybdenum	OXIDIZERS ALKALIS/BASES/CAUSTICS (HMUG Groups 3, 5, 18)	FIRE HAZARD HEAT
9	T4, V4, W4	HYDRAULIC FLUIDS	Petroleum-based Synthetic Fire-Retardant	CORROSIONS, OXIDIZERS (HMUG Groups 1, 3, 5, 18)	VIOLENT REACTION
10	P2 to P4, T4, T4, V4, W4	INSPECTION PENETRANTS	Petroleum-based Dyes	CORROSIONS, OXIDIZERS (HMUG Groups 1, 3, 5, 18)	HEAT FIRE HAZARD
11	01-04, 01-04, P2 to P4, T4, T4, V4, W4	LUBRICANTS/ OILS	General Purpose, Grease, Turbine, Weapons	ACIDS, OXIDIZERS (HMUG Groups 1, 5, 18)	HEAT FIRE HAZARD
12	P2 to P4, P2 to P4, T4, T4, V4, W4	PAINT MATERIALS	Primers, Enamels, Undercoats, Lacquers, Varnishes, Non-Solids, Trimmers	ACIDS, OXIDIZERS (HMUG Groups 1, 5, 18)	HEAT FIRE HAZARD
13	01-04, 01-04, P2 to P4, T4, T4, V4, W4	PHOTO CHEMICALS	Developer, Stopbath, Toner, Etchant, Replenisher	ACIDS HEAVY METALS (HMUG Groups 1, 18, 20)	HEAT FIRE HAZARD
14	P4	POLISH/WAX COMPOUNDS	Buffing Compounds Metal Polishes General Purpose Waxes	CORROSIONS OXIDIZERS (HMUG Groups 1, 3, 18)	HEAT, FIRE HAZARD VIOLENT REACTION
15	P2 to P4, T4, T4, V4, W4	SOLVENTS	Methyl Ethyl Ketone (MEK) Toluene, Xylene Acetone	CORROSIONS OXIDIZERS BATTERIES (HMUG Groups 1, 3, 18, 20, 22)	HEAT FIRE HAZARD
16	T4, T4, T4	THERMAL INSULATION	Asbestos Fiberglass Glass Wool	MATERIALS NOT REACTIVE KEEP DRY	NO REACTION
17	01-04, 01-04, P2 to P4, T4, T4, V4, W4	WATER TEST/TREATMENT CHEMICALS	HNO ₃ Acid Mercuric Nitrate Caustic Soda	CORROSIONS OXIDIZERS HEAVY METALS (HMUG Groups 1, 3, 18, 20, 22)	HEAT VIOLENT REACTION
18	01 to 04	OXIDIZERS	Calcium Hypochlorite Laundry Bleach OAS Caustics	PETROLEUM BASED MATERIALS FUELS, SOLVENTS, CORROSIONS, HEAT (HMUG Groups 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 17, 18, 20, 22, 23)	FIRE HAZARD VIOLENT REACTION EXPLOSION HAZARD TOXIC GAS GENERATION
19	P1 to P4, V4, V4, W4	FUELS	JPL JP8 Goodline Diesel Fuel	CORROSIONS OXIDIZERS (HMUG Groups 1, 3, 5, 18)	FIRE HAZARD TOXIC GAS GENERATION
20	T4, V4, W4	HEAVY METALS	Mercury Lead Benzyltrim	CORROSIONS OXIDIZERS WATER TREATMENT/PHOTO-CHEMICALS (HMUG Groups 1, 3, 5, 18, 22, 23)	VIOLENT REACTION GENERATION OF TOXIC AND FLAMMABLE GASES
21	24 to 27	BATTERIES	Lead-Acid Dry-Cell Alkaline	SOLVENTS HEAVY METALS OXIDIZERS (HMUG Groups 18, 19, 20, 22)	HEAT VIOLENT REACTION TOXIC GAS GENERATION TOXIC GAS GENERATION
22	T2 to T6	PESTICIDES	Insecticides, Fungicides Rodenticides Fumigants	CORROSIONS OXIDIZERS (HMUG Groups 1, 3, 18, 20)	TOXIC GAS GENERATION

- This chart is to be used as a **GUIDE ONLY!**
- Compare the desired HMUG Group/HCC in the left column with the Incompatible Material(s) of that Group in the center column on the same row. Mixing of the HMUG Group/HCC with the Incompatible Material(s) may result in the reaction(s) listed in the right column.
- Not all applicable HCCs are listed; only the most frequently encountered HCCs (except N1) are listed.

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8.0 ASBESTOS

Asbestos was widely used in many products (especially building parts) prior to 1990 for its fire resistance, strength, and affordability. However, exposure to friable asbestos can lead to lung diseases including cancer. Contractors working aboard the installation must follow all Federal, State, and local regulations/specifications for the proper notification, removal, disposal, and management of all asbestos-containing materials (ACM) associated with demolition and renovation projects.

8.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with asbestos and its management. If you have any questions or concerns about the information in this section, please consult the ROICC or Contract Representative, who will contact the appropriate EMD program if additional clarification is necessary.

Please consult the ROICC or Contract Representative with any questions or concerns about the information in this section.

8.1.1. Key Definitions

- **Abatement.** Work performed to repair, maintain, remove, isolate, or encapsulate ACM.
- **Asbestos.** Asbestos is the generic term for a group of naturally occurring fibrous silicate minerals, including those that typically exhibit high tensile

strength, flexibility, and resistance to thermal, chemical, and electrical conditions. Asbestos was commonly used in installed products such as roofing shingles, floor tiles, cement pipe and sheeting, roofing felts, insulation, ceiling tiles, fire-resistant drywall, and acoustical products.

- **Asbestos-Containing Material.** Any material containing more than 1 percent asbestos, per 29 CFR 1926.1101.
- **Category I Non-friable ACM.** Asbestos-containing packings, gaskets, resilient floor covering, and asphalt roofing products containing more than 1 percent asbestos, per 40 CFR 61, Subpart M.
- **Category II Non-friable ACM.** Any material, excluding Category I non-friable ACM, containing more than 1 percent asbestos that, when dry, cannot be crumbled, pulverized, or reduced to powder by hand pressure, per 40 CFR 61, Subpart M.
- **Demolition.** The wrecking or removal of any load-bearing walls or structure with any related handling operations.
- **Friable.** Any ACM that, when dry, can be crumbled, pulverized, or reduced to powder by hand pressure (may include damaged ACM that was previously identified as non-friable), per 40 CFR 763.
- **Glove Bag.** A sealed compartment with attached inner gloves that is used for handling ACM. Glove bags provide a small work area enclosure typically used for small-scale asbestos stripping operations.

- **Presumed Asbestos-Containing Material (PACM).** Thermal system insulation (TSI) and surfacing material found in buildings constructed no later than 1980, per 29 CFR 1926.1101.
- **Regulated Asbestos-Containing Material (RACM).** Includes friable ACM, Category I non-friable ACM that has become friable, Category I non-friable ACM that has been sanded, ground, cut, etc., and Category II non-friable ACM that has a high probability of becoming crumbled, pulverized, or reduced to powder during demolition or renovation, per 40 CFR 61, Subpart M.
- **Removal.** Stripping, chipping, sanding, sawing, drilling, scraping, sucking, and other methods of separating material from its installed location in a building.
- **Renovation.** Altering a facility or its components in any way, including stripping or removal of RACM, per 40 CFR 61, Subpart M.

8.1.2. Key Concepts

- **Demolition Notification.** North Carolina law requires notification for all demolition, regardless of whether asbestos is present, 10 working days prior to starting demolition.
- **Disposal.** ACM waste can be accepted at the MCB Camp Lejeune Sanitary Landfill. Work with the ROICC or Contract Representative to coordinate the disposal through the MCB Camp Lejeune Sanitary

Landfill. Asbestos waste is only accepted on Mondays through Thursdays from 0700 to 1000.

- **Removal Requirements.** Permits for asbestos removal or demolition must be obtained when the ACM present exceeds 260 linear feet, 160 square feet, or 35 cubic feet. Additionally, proper work practice procedures must be followed during demolition or renovation operations.
- **Renovation Notification.** If ACM is present within a structure, North Carolina law requires notification of renovation 10 working days prior to starting renovation.

8.1.3. Environmental Management System

Contractor practices associated with asbestos management include the following:

- Building operation/maintenance/repair
- Construction/demolition/renovation
- Equipment operation/maintenance/disposal
- HW transportation
- Parts replacement

The potential impacts of these activities on the environment include soil contamination, degradation of water quality and air quality, and the potential exposure of installation occupants.

8.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard the installation must be aware of and adhere to all applicable regulations and requirements regarding ACM, which include but may not be limited to the following:

- [Asbestos General Standard, 29 CFR 1910.1001 – Asbestos.](#) Applies to all occupational exposures to asbestos in all industries covered by the Occupational Safety and Health Administration (OSHA).
- [Asbestos Hazard and Emergency Response Act \(AHERA\), 1986.](#) AHERA was written primarily to provide officials in schools, grades K-12, with rules and guidance for the management of ACM.
- [Asbestos School Hazard Abatement Reauthorization Act, 1992.](#) This act extended AHERA regulations to cover public and commercial buildings.
- [National Emission Standards for Hazardous Air Pollutants \(NESHAP\), Subpart A, General Provisions, and 40 CFR 61 – Subpart M – National Emission Standard for Asbestos.](#) Includes standards for asbestos demolition, renovation, and disposal, and administrative requirements.
- [Naval Facilities Engineering Service Center, Facilities Management Guide for Asbestos and Lead.](#) Summarizes asbestos and lead requirements

that routinely affect facilities operations, to protect workers, building occupants, and the environment.

- [Naval Facilities Guide Specifications and Engineering Control of Asbestos Materials.](#) Covers the requirements for safety procedures and requirements for the demolition, removal, encapsulation, enclosure, repair, and disposal of ACM.
- [North Carolina Asbestos Hazard Management Program, NC General Statutes, Chapter 130A, Article 19; 10A NCAC 41C.0601–.0608 and .0611.](#) Incorporates 40 CFR 763 and 29 CFR 1926.1101 by reference and outlines criteria for asbestos exposures in public areas, accreditation of persons conducting asbestos management activities, and asbestos permitting and fee requirements.
- [Safety and Health Regulations for Construction, Asbestos, 29 CFR 1926.1101.](#) Regulates asbestos in the construction, demolition, alteration, repair, maintenance, or renovation of structures that contain asbestos.

8.3. RESPONSIBILITIES BEFORE A DEMOLITION OR RENOVATION PROJECT

Prior to starting a demolition or renovation project, contractors must:

- Determine whether ACM, PACM, and/or RACM are present in the buildings involved in the project.
- Complete the necessary notifications to the State of North Carolina and obtain any necessary permits for the removal of ACM, PACM, and/or RACM.
- Understand what actions to take if ACM, PACM, and/or RACM are unexpectedly encountered during project execution.
- Remove all non-friable and friable ACM in accordance with all Federal, State, and local regulations, prior to demolition activities.
- Know how to properly dispose of ACM, and provide any waste disposal manifests generated for disposal.

The ROICC or Contract Representative is required to notify Camp Lejeune's Asbestos Program Manager of all work involving asbestos removals, including glove bag projects.

8.3.1. Identification of ACM and PACM

Form DHHS 3768 *must* be posted onsite during all permitted projects.

Contract documents will identify the presence of known ACM, PACM, and RACM. Contact the ROICC or Contract Representative with questions regarding the presence of these materials as identified in the contract documents. An inspection conducted by a Health Hazards

Control Unit (HHCU)-licensed asbestos inspector may be necessary to confirm the location and quantities of any ACM, PACM, and/or RACM and determine if any previously unidentified materials are present.

8.3.2. Notification

To maintain accurate files and records, the ROICC or Contract Representative is required to notify the Asbestos Program Manager, who is part of the Installations and Environment Department, of all work involving asbestos removals, including glove bag projects.

The North Carolina Department of Health and Human Services (DHHS) Form 3768, *Asbestos Permit Application and Notification for*

Demolition and Renovation, must be submitted to the North Carolina HHCU 10 working days in advance of demolition activities, regardless of whether asbestos is present. This form must be posted onsite during the entire duration of the project. Have the ROICC or Contract Representative contact the Asbestos Program Manager with questions or concerns about requirements for notification of demolition or renovation.

A demolition/renovation notification form, DHHS 3768, must be submitted to the NC HHCU 10 working days before demolition activities, regardless of whether asbestos is present.

8.3.3. Removal

Any ACM, PACM, and/or RACM present must be removed before the area is disturbed during renovation or demolition

activities (except in certain rare instances). Certification and handling requirements for asbestos removal are provided in 10A NCAC 41C and the Asbestos NESHAP. Refer to these regulations for detailed requirements.

8.3.4. Training

North Carolina regulations require that all persons who perform asbestos management activities in the State of North Carolina must be accredited by the North Carolina HHCU under the appropriate accreditation category (i.e., Building Inspector, Project Supervisor, and/or Abatement Worker). Training documentation should be available upon request.

8.4. RESPONSIBILITIES DURING A DEMOLITION OR RENOVATION PROJECT

North Carolina regulations require that DHHS Form 3768, *Asbestos Permit Application and Notification for Demolition and Renovation*, be acquired by the contractor and posted onsite during all permitted projects. Contractors must post this form when the project will remove the following: at least 260 linear feet, 160 square feet, or 35 cubic feet of RACM or asbestos that might become regulated as a result of handling. The form must also be posted for nonscheduled asbestos removal that will exceed these numbers in a calendar year.

During a renovation or demolition project, if the contractor suspects the presence of additional ACM (other than the materials identified in contract documents), the contractor

must immediately report the suspected area to the ROICC or Contract Representative. Before proceeding, the facility must be inspected by an asbestos inspector licensed by the North Carolina HHCU. The individual performing the asbestos survey will coordinate with the ROICC or Contract

During a renovation or demolition project, a contractor who suspects additional ACM is present must immediately report the suspected area to the ROICC or Contract Representative.

Representative throughout the process. A legible copy of the building inspection report must be provided to the North Carolina HHCU prior to each demolition and upon request for renovations; a building inspection report will be acceptable only if the inspection was performed during the 3 years prior to the demolition. A copy of the report should also be forwarded to the Asbestos Program Manager.

For specific work procedures and requirements for glove bag projects, refer to 29 CFR 1926.1101.

8.5. DISPOSAL OF ACM WASTE

Contractors can dispose of ACM waste at the MCB Camp Lejeune Sanitary Landfill after first coordinating with the MCB Camp Lejeune Landfill office through the ROICC or Contract Representative. The contractor must provide the MCB Camp Lejeune Landfill with Form DHHS 3787, *North Carolina Health Hazards Control Unit's Asbestos*

Waste Shipment Record. The contractor must submit this form to the North Carolina HHCU for all permitted asbestos removal projects.

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9.0 LEAD-BASED PAINT

Lead was used in paint for its color and water-resistant properties until it was banned in 1978 for its highly toxic properties that may cause a range of health problems, especially in young children. Improper removal of lead-based paint (LBP) may result in paint chips and dust, which may contaminate a structure inside and out. The North Carolina DHHS regulations require any person who performs an inspection, risk assessment, or abatement to be certified. North Carolina DHHS also requires a person to obtain a permit for conducting an abatement of a child-occupied facility or target housing.

9.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with LBP activities. If you have any questions or concerns about the information in this section, please consult the ROICC or Contract Representative, who will contact the appropriate Environmental Department or Safety Representative if additional clarification is necessary.

9.1.1. Key Definitions

- **Abatement.** The permanent removal or elimination of all LBP hazards.
- **Demolition.** The removal of any load-bearing walls or structure.

- **Inspection.** A surface-by-surface investigation to determine the presence of LBP, and a report explaining the results of the investigation.
- **Lead-Based Paint.** Surface coatings that contain lead in amounts equal to or in excess of 1.0 milligram per square centimeter, as measured by X-ray fluorescence (XRF) or laboratory analysis, or more than 0.5 percent by weight, per 40 CFR 745.
- **Lead-Containing Paint.** Surface coatings that contain lead in any amount greater than the laboratory reporting limit but less than 1.0 milligram per square centimeter, or less than 0.5 percent by weight, per 29 CFR 1926.62 and 29 CFR 1910.1025 (also contained in 40 CFR 745 Subpart L, and adopted by the State of North Carolina under North Carolina General Statute Chapter 130A, Article 19A).
- **Renovation.** Alteration of a facility or its components in any way.
- **Target Housing.** Any housing constructed before 1978, with the exception of housing for the elderly and persons with disabilities (unless a child under the age of 6 lives there) and residential dwellings where the living areas are not separated from the sleeping areas (efficiencies, studio apartments, dormitories, etc.).

9.1.2. Key Concepts

- **Disposal.** Analysis is required to determine proper disposal of waste (non-hazardous or hazardous). A Toxic Characteristic Leaching Procedure (TCLP) analysis must be conducted to determine whether lead levels have exceeded 5 parts per million (ppm), which is the RCRA threshold for HW determination.
- **LBP Survey.** A LBP survey is required prior to disturbing painted surfaces, to determine whether the paint meets the criteria of lead containing over 1.0 milligram per square centimeter or over 0.5 percent by weight.
- **Training.** LBP training requirements set forth by the OSHA must be followed by all personnel involved in all LBP removal activities. MCB Camp Lejeune Base Safety tracks this training for contract staff, as the Safety Office houses the Lead Program Manager.

9.1.3. Environmental Management System

Contractor practices associated with LBP include the following:

- Construction/demolition/renovation
- HW transportation
- Paint removal

The potential impacts of these activities on the environment include the potential degradation of soil, water, and air

environments, and the potential exposure of installation occupants.

9.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard the installation must be aware of and adhere to all applicable Federal, State, and local regulations and requirements regarding LBP activities, which include but may not be limited to the following:

- [Naval Facilities Engineering Service Center, Facilities Management Guide for Asbestos and Lead.](#) Summarizes asbestos and lead requirements that routinely impact facilities operations, in order to protect workers, building occupants, and the environment.
- [Lead-Based Paint Hazard Management Program, NC General Statutes, Chapter 130A, Article 19A, Section 130A-453.01 through 453.11.](#) Requires a person who performs an inspection, risk assessment, abatement, or abatement design work in a child-occupied facility (daycare center, pre-school, etc.) or housing built before 1978 to be certified and establishes the requirements for certification, including the oversight of required training. It also requires a person who conducts an abatement of a child-occupied facility or target housing to obtain a permit for the abatement; establishes work practice standards for LBP abatement activities; and has adopted requirements included in 40 CFR Part 745, Subpart L and 40 CFR Part 745, Subpart D.

- **Lead-Based Paint Hazard Management Program for Renovation, Repair, and Painting (RRP), 10A NCAC 41C.0900.** Common renovation activities may create hazardous lead dust and chips by disturbing LBP, which may be harmful to adults and children. This article requires that dust sampling technicians, firms, and individuals performing renovation, repair, and painting projects for compensation that disturb LBP in housing and child-occupied facilities built before 1978 be certified and follow specific work practices to prevent lead contamination. Child-occupied facilities include, but are not limited to, child care facilities and schools (with children under the age of 6) that were built before 1978.
- **10A NCAC 41C.0800, Lead-Based Paint Hazard Management Program.** Requires (1) all individuals and firms involved in LBP activities to be certified and (2) all LBP activities to be carried out in accordance with 40 CFR 745.
- **29 CFR 1926, Safety and Health Regulations for Construction.** Contains the OSHA requirements for construction activities where workers may come into contact with lead.
- **40 CFR Part 745, Lead-Based Paint Poisoning Prevention in Certain Residential Structures.** Ensures that (1) LBP abatement professionals, including workers, supervisors, inspectors, risk assessors, and project designers, are well trained in conducting LBP activities; and (2) inspections for the

identification of LBP, risk assessments for the evaluation of LBP hazards, and abatements for the permanent elimination of LBP hazards are conducted safely, effectively, and reliably by requiring certification of professionals.

9.3. RESPONSIBILITIES BEFORE RENOVATION OR DEMOLITION

**Buildings
constructed prior
to 1978 are
assumed to
contain LBP.**

Ordinary renovation and maintenance activities may create dust that contains lead, but following lead-safe work practices may help mitigate or prevent lead hazards. The North Carolina RRP Program (10A

NCAC 41C.0900) mandates that contractors, property managers, and others working for compensation in homes and child-occupied facilities built before 1978 be trained in and use lead-safe work practices. In addition, it mandates that contractors provide the owner and occupants with *The Lead-Safe Certified Guide to Renovate Right* information pamphlet, which is found at the following website: <http://epi.publichealth.nc.gov/lead/pdf/RenovateRight.pdf>

Individuals must be certified by the State of North Carolina to perform RRP activities for compensation in housing and child-occupied facilities built before 1978. A firm engaged in regulated renovation activities (such as RRP that disturbs more than 6 square feet of interior painted surfaces or 20 square feet of exterior painted surfaces, or dust sampling after renovation) must be a certified renovation firm.

To address the hazards associated with the improper abatement or removal of LBP, any person who performs an inspection, risk assessment, abatement, or abatement design work in a child-occupied facility (child development centers, preschools, etc.) or housing built before 1978 must be certified by the State of North Carolina. Any person who conducts an abatement of a child-occupied facility or target housing must also obtain a permit for the abatement. Individuals conducting LBP abatement activities in North Carolina, such as inspections, risk assessments, LBP hazards abatement, clearance testing, or abatement project design in housing and child-occupied facilities built before 1978, must be certified by the State of North Carolina. A firm engaged in abatement activities must be a certified lead abatement firm.

Prior to any renovation or demolition aboard the installation that involves the disturbance of painted surfaces, a LBP survey must be completed by an inspector certified in North Carolina, retained through the ROICC or Public Works Division (PWD). Certain projects will use PWD staff to conduct the sampling, and other projects will use contracted personnel. Buildings constructed prior to 1978 are assumed to contain LBP; therefore, no LBP survey is necessary. The LBP survey (through sampling and analysis) will determine whether painted surfaces meet the criteria of LBP (lead content equal to or greater than 1.0 milligram per square centimeter as measured by XRF or lab analysis, or 0.5 percent by weight). Naval Facilities Guide Specifications and contract documents must be implemented for contracts where LBP is to be abated/removed prior to demolition or renovation.

If the area is to be reoccupied, final clearance must be conducted, including a visual inspection and sample collection, prior to reoccupation. Clearance on all projects involving abatement must be provided by a certified risk assessor or a certified LBP inspector. Clearance for RRP projects may be conducted by a certified risk assessor, certified LBP inspector, or certified dust sampling technician.

9.4. PERMITS

Contractors must obtain a North Carolina LBP Abatement Permit from North Carolina DHHS when lead paint is removed from targeted structures (child-occupied facilities or housing built prior to 1978).

9.5. DISPOSAL

If the LBP survey determines that LBP will be abated as part of a renovation or demolition project, the contractor must take analytical samples to determine whether the waste material is hazardous. Usually, a TCLP sample is collected from a “representative” sample of the material removed. The

If the LBP survey determines that LBP will be abated as part of a renovation or demolition project, analytical samples must be taken to determine whether the material is hazardous.

The laboratory conducting the sample analysis must be accredited by the Environmental Lead Laboratory Accreditation Program. A list of these accredited labs is available by contacting (703) 849-8888 or visiting

http://apps.aiha.org/qms_aiha/public/pages/reports/publicScopeView.aspx?ProgramCode=37&Version=2.

If the LBP is removed from the underlying building material, then the paint is the waste stream. If the LBP is removed with the building material, then both materials are considered the waste stream.

If the lead content is below HW regulatory disposal levels, consult the ROICC or Contract Representative to determine whether if the contract allows for the disposal of the material in the MCB Camp Lejeune Sanitary Landfill. Lead waste is only accepted on Mondays through Thursdays from 0700 to 1000.

If the abated LBP is above HW regulatory levels, refer to Section 7.0 of this guide for information on HW management and disposal requirements.

9.6. TRAINING

Before the project begins, workers who are subject to lead exposure during abatement or removal activities must be trained according to the OSHA regulations in 29 CFR 1926.62 concerning lead exposure in construction, and they must receive all training and certification specified by 10A NCAC 41C.0800 and 10A NCAC 41C.0900. The contractor is responsible for providing this training before initiating any work aboard MCB Camp Lejeune.

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10.0 NATURAL RESOURCES

The installation has stewardship and recovery responsibilities over the natural resources on the installation. These responsibilities are regulated under numerous laws described in this section. The installation ensures compliance with these laws through an interdisciplinary process of review and coordination of all activities occurring on the installation.

Contractors working on the installation are responsible for complying with conditions and measures imposed on their work as a result of this process; these responsibilities include preserving the natural resources within the project boundaries and outside the limits of permanent work, restoring work sites to an equivalent or improved condition after the work is complete, and confining construction activities to the limits of the work indicated or specified. The contractor is advised that the installation is subject to strict compliance with Federal, State, and local wildlife laws and regulations. The contractor must not disturb wildlife (birds, nesting birds, mammals, reptiles, amphibians, and fish) or the native habitat adjacent to the project area except when indicated or specified.

10.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with natural resources management. If you have any questions or concerns

**Please consult the
ROICC or Contract
Representative
with any
questions or
concerns about
the information in
this section.**

about the information in this section or require assistance regarding any wildlife matters (snakes, nesting birds, nuisance wildlife, etc.) on the site or within the project area, please consult the ROICC or Contract Representative, who will contact the Environmental Conservation Branch.

10.1.1. Key Definitions

- **Conservation.** The planned management, use, and protection of natural resources to provide their sustained use and continued benefit to present and future generations.
- **Ecosystem.** A dynamic, natural complex of living organisms interacting with each other and with their associated nonliving environment.
- **Habitat.** An area where a plant or animal species lives, grows, and reproduces, and the environment that satisfies its life requirements.
- **Natural Resource.** Soil, water, air, plants, and animals, according to the Natural Resources Conservation Service.
- **Endangered or Threatened Species.** Federally listed taxon that is “in danger of extinction throughout all or a significant portion of its range” or “likely to become endangered within the foreseeable future throughout all or a significant portion of its range.”
- **Riparian Buffer.** Vegetated area bordering a body of water, such as a stream, lake, or pond.

- **Wetland.** Areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adapted for life in saturated soil conditions. Wetlands generally include swamps, marshes, bogs and similar areas, per the EPA.

10.1.2. Key Concepts

- **Coastal Zone Management Act (CZMA) of 1972.** Requires each installation to ensure that its operations, activities, projects, and programs affecting the coastal zone in or on coastal lands or waters are consistent with the federally approved Coastal Zone Management Plan of the State.
- **Ecosystem Management.** A goal-driven approach to managing natural and cultural resources that supports present and future mission requirements; preserves ecosystem integrity; is at a scale compatible with natural processes; is cognizant of natural processes' time scales; recognizes social and economic viability within functioning ecosystems; is adaptable to complex, changing requirements; and is realized through effective partnerships among private, local, State, tribal, and Federal interests. Ecosystem management is a process that considers the environment as a complex system functioning as a whole, not as a collection of parts, and recognizes that people and their social and economic needs are a part of the whole.

- **Integrated Natural Resources Management Plan (INRMP).** A planning document using ecosystem management principles to direct the management and conservation of installation natural resources, which includes all elements of natural resources management applicable to the installation.
- **National Environmental Policy Act.** Requires Federal agencies, including the USMC, to consider the environmental impacts of projects prior to implementation. All projects that support military training, minor and major military construction, maintenance, and natural resources management actions are reviewed for potential environmental impacts. Contractors must obtain and review any NEPA documentation associated with their projects. All NEPA documentation can be obtained from the ROICC or Contract Representative.
- **Threatened and Endangered Species.** Specific requirements regarding protected areas on the installation apply to contractor activities. Eight federally threatened and endangered species are currently managed at MCB Camp Lejeune – red-cockaded woodpecker, green sea turtle, loggerhead sea turtle, rough-leaved loosestrife, seabeach amaranth, piping plover, red knot, and American alligator. In addition, as of March 25, 2015, the U.S. Fish and Wildlife Service lists six species as threatened and nine as endangered for Onslow County, NC. Consult the ROICC or Contract Representative to determine if there are any project

requirements regarding threatened or endangered species.

- **Timber.** Contractors must ensure that the ROICC or Contract Representative notify the EMD's Forest Management Program prior to conducting site work. Timber will not be released to contractors without the approval of the Forest Management Program.
- **Waters of the United States.** All waters that are currently used, were used in the past, or may be susceptible to use in interstate or foreign commerce; interstate waters; the territorial seas; impoundments; tributaries; adjacent waters including wetlands, ponds, lakes, oxbows, and impoundments; waters determined to have a significant nexus; Carolina bays; Pocosins; and waters within the 100-year floodplain or within 4,000 feet of the high tide line or ordinary high water mark; per 33 U.S.C. 1251 *et seq.* Section 328.3.
- **Wetlands.** Any work in installation waters or wetlands requires a permit prior to the start of an activity.

10.1.3. Environmental Management System

Contractor practices associated with natural resources include the following:

- Erosion/runoff control
- Fish stocking
- Habitat management

- Land clearing
- Live fire range operations
- Road construction and maintenance
- Soil excavation/grading
- Timber management
- Urban wildlife management

The potential impacts of these activities on the environment include air emissions, sedimentation, eutrophication of surface waters (addition of nutrients that stimulate aquatic plant growth and depletes oxygen), degradation of habitat, impacts to marine mammals, damage to commercial and noncommercial timber, impacts to endangered species and natural resources, and degradation of soil quality.

10.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard the installation must be aware of and adhere to all applicable regulations and requirements regarding natural resources, which include but may not be limited to the following:

- **Bald and Golden Eagle Protection Act of 1940, as Amended (16 USC 688 et seq.)**. Prohibits taking, possessing, and transporting bald eagles and golden eagles and importing and exporting their parts, nests, or eggs. The definition of “take” includes pursue, shoot, shoot at, poison, wound, capture, trap, collect, molest, or disturb.

- **BO 5090.11A, Protected Species Program.** Sets forth regulations and establishes responsibilities to ensure the conservation of threatened and endangered species and species at risk aboard MCB Camp Lejeune.
- **BO 5090.12, Environmental Impact Review Procedures.** Implements NEPA 1969 and NEPA policy and guidance in Chapter 12 of MCO P5090.2A.
- **Clean Water Act of 1972.** Establishes the basic structure for regulating wastewater discharges and placing fill materials into the waters of the United States.
- **CZMA of 1972 (16 USC 1451 *et seq.*).** Requires that Federal actions affecting any land/water use or coastal zone natural resource be implemented consistent with the enforceable policies of an approved State coastal management program. Requires concurrence from the State before taking an action affecting the use of land, water, or natural resources of the coastal zone.
- **Endangered Species Act of 1973 (16 USC 1531 *et seq.*).** Requires all Federal agencies to carry out programs to conserve federally listed endangered and threatened species of plants and wildlife.
- **EO 11990, Protection of Wetlands, 24 May 1977.** Addresses Federal agency actions required to identify and protect wetlands, minimize the risk of wetlands destruction or modification, and preserve

and enhance the natural and beneficial values of wetlands.

- **EO 13186, Responsibilities of Federal Agencies to Protect Migratory Birds, 10 January 2001.** Requires each Federal agency taking actions that have, or are likely to have, a measurable negative effect on migratory bird populations to develop and implement a plan to promote the conservation of migratory bird populations.
- **Marine Mammal Protection Act of 1972 (MMPA), as Amended (16 USC 1361 *et seq.*).** Mandates a moratorium on the killing, capturing, harming, and importing of marine mammals and marine mammal products. The MMPA also prohibits the taking of any marine mammal, including to harass, hunt, capture, collect, or kill any marine mammal, including any of the following: collection of dead animals or their parts, restraint or detention of a marine mammal, tagging a marine mammal, the negligent or intentional operation of an aircraft or vessel, or any other negligent or intentional act that results in disturbing or molesting a marine mammal.
- **Migratory Bird Treaty Act of 1918, as Amended (16 USC 703 *et seq.*).** Protects migratory birds (listed in 50 CFR 10.13) and their nests and eggs and establishes a permitting process for the taking of migratory birds by establishing a Federal prohibition to “pursue, hunt, take, capture, kill, attempt to take, capture or kill, possess, offer for sale, sell, offer to purchase, purchase, deliver for shipment, ship, cause

to be shipped, deliver for transportation, transport, cause to be transported, carry, or cause to be carried by any means whatever, receive for shipment, transportation or carriage, or export, at any time, or in any manner, any migratory bird or any part, nest, or egg of any such bird.”

- **MCO P5090.2A, Environmental Compliance and Protection Manual.** Provides guidance and instruction to installations to ensure the protection, conservation, and management of watersheds, wetlands, natural landscapes, soils, forests, fish and wildlife, and other natural resources as vital USMC assets.
- **NEPA 1969 (42 U.S.C. 4321 *et seq.*)**. Requires Federal agencies, including the USMC, to consider the environmental impacts of projects before the decisionmaker proceeds with the implementation. All projects that support military training, major and minor military construction, maintenance, and natural resources management actions are reviewed for potential environmental impacts.
- **Rivers and Harbors Act of 1899.** Prohibits the excavation, filling, or alteration of the course, condition, or capacity of any port, harbor, or channel without prior approval from the Chief of Engineers.
- **Sikes Act of 1960, as Amended (16 USC 670 *et seq.*)**. Requires military installations to manage natural resources for multipurpose uses and public access appropriate for those uses, as well as ensuring no net loss to training, testing or other defined

missions of the installation through the development and implementation of an INRMP.

- [Neuse River Basin Riparian Buffer Rules \(15A NCAC 02B.0233\)](#). Require a 50-foot riparian buffer that is divided into two zones. The 30 feet closest to the water (Zone 1) must remain undisturbed. The outer 20 feet (Zone 2) may include managed vegetation, such as lawns or shrubbery. The riparian buffer rules also require diffuse flow of stormwater runoff. The buffers apply to intermittent streams, perennial streams, lakes, ponds, estuaries, and modified natural streams that are depicted on the most recent printed version of the soil survey map prepared by the Natural Resources Conservation Service or the 1:24,000 scale quadrangle topographic map prepared by the U.S. Geologic Survey.

10.3. NATIONAL ENVIRONMENTAL POLICY ACT

Staff specialists from various installation departments participate in the NEPA process, which coordinates the review of projects and documents environmental impacts (or lack thereof) for projects before implementation.

The documentation of this review process occasionally includes mandatory conditions affecting the design and construction/ implementation of the project. The documentation, when completed, is provided to the action proponent, who is expected to provide it to the ROICC or Contract Representative.

Consult the ROICC or Contract Representative to obtain or review any NEPA documentation associated with the project. The documentation marks the end of the NEPA review process; it does not constitute approval for the proponent of the action to implement the action. Some contracts may include stipulations from the NEPA document that must be implemented prior to the onset of work to

Consult the ROICC or Contract Representative to obtain or review any NEPA documentation associated with the project.

prevent environmental impacts and violations of Federal or State rules and regulations. Stipulations could include replacing monitoring wells if damages occur from contractor operations, stopping work if contamination is encountered, notification that a wetlands permit is required, seasonal restrictions, etc.

10.4. TIMBER

Potential timber resources are identified during the NEPA process. The contractor is responsible for advising the ROICC or Contract Representative to notify EMD's Forest Management Program prior to beginning site work. Additionally, the ROICC or Contract Representative and/or contractor is required to notify the Forest Management Program if the contract has been amended with modifications to the site location.

MCB Camp Lejeune manages its forest in accordance with the installation INRMP. The Forest Management Program

maintains first right of refusal for all timber products on construction projects and will determine whether the Government will harvest the timber or release it to the contractor. The Government retains exclusive rights to all forest products on construction projects. If the Government elects to harvest the timber, only merchantable timber will be removed.

Contractors must adhere to the following requirements when performing site work that may impact timber resources:

- Do not remove, cut, deface, injure, or destroy trees or shrubs without authorization from the ROICC or Contract Representative.
- Do not fasten or attach ropes, cables, or guy wires to nearby trees for anchorages without authorization from the ROICC or Contract Representative. (If these actions are authorized, the contractor is responsible for any resultant damage.)
- Protect trees that are to remain in place and that may be injured, bruised, defaced, or otherwise damaged by construction operations.
- With the ROICC or Contract Representative's approval, use approved methods of excavation to

Protect existing trees that are to remain in place and that may be injured, bruised, defaced, or otherwise damaged by construction operations.

remove trees with 30 percent or more of their root systems destroyed.

- With the ROICC or Contract Representative's approval, remove trees and other landscape features scarred or damaged by equipment operations, and replace with equivalent, undamaged trees and landscape features.

Please refer to Section 12.0 for disposal information for land-clearing debris.

10.5. THREATENED AND ENDANGERED SPECIES

Entry into a threatened or endangered species site or shorebird nesting area marked with signs and/or white paint is prohibited without written permission from installation personnel.

With the exception of improved roadways, entry into a threatened or endangered species site or shorebird nesting area marked with signs and/or white paint is prohibited without written permission from installation personnel. BO 5090.11A lists threatened and endangered species that may be encountered at the installation. The following restrictions apply on the installation unless written permission is explicitly provided:

- Work on Onslow Beach or Brown's Island is not permitted between April 1 and October 31. Traffic

on the beaches should be limited to below the high tide line.

- Vehicles and lighting are prohibited on the beaches overnight between May 1 and October 31.
- Construction activities are prohibited within 1,500 feet of a bald eagle's nest (JD, MC, and IF Training area).
- Cutting or damaging pine trees is not permitted.
- Altering hydrology through excavation, ditching, etc., is prohibited.
- Fish and wildlife must not be disturbed.
- Water flows may not be altered; the native habitat adjacent to the project and critical to the survival of fish and wildlife may not be significantly disturbed, except as indicated or specified.

10.6. WETLANDS

10.6.1. Avoidance

In accordance with MCO P5090.2A, all facilities and operational actions must avoid, to the maximum degree feasible, wetlands destruction or degradation, regardless of the wetlands size or legal necessity for a permit. Prior to the onset of

Contractors must incorporate avoidance and minimization measures to comply with the national policy to permit no overall net loss of wetlands.

construction, coordination with the Environmental Conservation Branch of EMD should have taken place during project design to ensure CWA permitting issues are addressed by the contractor at the earliest opportunity. Contractors must incorporate avoidance and minimization measures to comply with the national policy to permit no overall net loss of wetlands, as well as meeting concept design criteria while incorporating avoidance and minimization measures to protect wetlands, streams, and waters of the United States. Any proposed action that would significantly affect wetlands must be coordinated with the CG of MCB Camp Lejeune.

The contractor must ensure that construction of all buildings, facilities, and related amenities, including earthwork, grading, landscaping, drainage, stormwater management, parking lot and paved roadway, sidewalks, site excavation, sanitary sewer system extensions, and domestic water extensions, avoids, to the maximum degree feasible, wetlands destruction or degradation.

Identified and mapped boundaries of the legally defined wetlands on all USMC lands within the project area will be distributed to the ROICC or Contract Representative for use (if available) and included in all design products, including drawings, plans, and figures.

10.6.2. Permits

All unavoidable potential impacts to wetlands or waters of the United States require prior coordination as described in this section. Failure to acquire written authorization for

If work in wetlands is required, know who is responsible for obtaining permits, and what the terms and conditions of the permits require.

impacts to wetlands and/or waters of the United States may result in significant project delays or design modifications.

No discharge of fill material, mechanized land clearing, or any other activity is allowed in jurisdictional wetlands or waters of the United States without the proper approvals. The contractor

may be responsible for obtaining the following permits (including pre-permit coordination, preparation, and submission of all permit applications after review and concurrence by the installation) and complying with all regulations and requirements stipulated by the State of North Carolina as conditions upon issuance of the permits:

- U. S. Army Corps of Engineers (USACE), Section 404 Permit (individual or applicable nationwide permit); CWA of 1977, as Amended (Public Law 95-217, 33 U. S. C. 1251 et seq.)
- North Carolina Division of Water Resources (NCDWR), Section 401 Water Quality Certification – (15A NCAC 02H) NCDEQ; CWA of 1977, as Amended (Public Law 95-217, 33 U. S. C. 1251 et seq.)
- North Carolina Division of Coastal Management (NCDCM), Federal Consistency Determination (15A NCAC 07) NCDEQ; CZMA of 1972 (16 USC 1451 et seq.)

Two types of activities generally require a permit from the USACE:

- **Activities within navigable waters.** Activities such as dredging, constructing docks and bulkheads, and placing navigation aids require review under Section 10 of the Rivers and Harbors Act of 1899 to ensure that they will not cause an obstruction to navigation.
- **Activities in wetlands and waters of the United States (regulated by Section 404 of the CWA of 1972).** A major aspect of the regulatory program under Section 404 of the CWA is determining which areas qualify for protection as wetlands. Contractors should contact the USACE, the NCDWR, or the NCDCM if there is any question about whether activities could impact wetlands, streams, or protected buffers.

Contractors working on the installation will not perform any work in waters of the United States or wetlands without an approved permit (even if the work is temporary).

Contractors working on the installation will not perform any work in waters of the United States or wetlands without an approved permit (even if the work is temporary). Examples of temporary discharges include dewatering of dredged material prior to final disposal and temporary fills for access roadways, cofferdams, storage, and work areas.

10.6.3. Impacts

Any disturbance to the soil or substrate (bottom material) of a wetland or water body, including a stream bed or protected buffer, is an impact and may adversely affect the hydrology of an area. Discharges of fill material generally include the following, without limitation:

- Placement of fill material that is necessary for the construction of any structure or impoundment requiring rock, sand, dirt, or other material for its construction; site-development fills for recreational, industrial, commercial, residential, and other uses; and causeways or road fills
- Dams and dikes
- Artificial islands
- Property protection or reclamation devices such as riprap, groins, seawalls, breakwaters, revetments, and beach nourishment
- Levees
- Fill for intake and outfall pipes and subaqueous utility lines
- Fill associated with the creation of ponds
- Any other work involving the discharge of fill or dredged material

10.6.4. Mitigation

Any facility requirement that cannot be sited to avoid wetlands must be designed to minimize wetlands degradation and must include compensatory mitigation as required by wetland regulatory agencies (USACE and NCDWR) in all phases of project planning, programming, and budgeting.

The contractor may be required to develop onsite mitigation, consisting of wetland/stream restoration or creation, for all unavoidable wetland and stream impacts, whenever possible and feasible.

The contractor may be required to develop onsite mitigation, if appropriate, consisting of wetland/stream/buffer restoration or creation, for all unavoidable wetland, stream, and buffer impacts, whenever possible and feasible. Use of USMC lands and lands of other entities may be permissible for mitigation purposes for USMC projects when consistent with EPA and USACE guidelines or permit provisions. Land within the project area suitable for

establishment of mitigation may be evaluated by the contractor and used for mitigation where compatible with mission requirements and approved by the CG. Proposals for permanent resource areas must be approved by the Assistant Secretary of the Navy (Installations and Environment) or his/her designee.

Offsite mitigation is preferred and should be coordinated through the North Carolina Division of Mitigation Services or an approved private mitigation bank.

10.7. TEMPORARY CONSTRUCTION

Traces of temporary construction facilities, such as haul roads, work areas, structures, foundations of temporary structures, stockpiles of excess or waste materials, and other signs of construction, should be removed upon completion of a contract or project. Temporary roads, parking areas, and similar temporarily used areas should be graded to conform to surrounding contours and the area restored, to the degree practical, to its state prior to any disturbing activities.

11.0 STORMWATER

MCB Camp Lejeune is responsible for stormwater permits associated with construction, industrial, or municipal activities that discharge to outfalls leading to receiving waters. The most applicable permit for contractors is the construction permit, since the majority of the contractor activities are affiliated with construction/renovation.

However, the contractor is also responsible for adhering to the requirements of the industrial and municipal permits held by MCB Camp Lejeune for all of the contractor activities on the installation. In essence, all contractors for the installation need to know and implement the

necessary measures to prevent stormwater runoff and pollution runoff from land-disturbing activities (LDAs) and associated construction permit requirements, as well as industrial and municipal activities. The general requirements for each area, as they apply to contractors, are discussed in the following subsections.

Please consult the ROICC or Contract Representative with any questions or concerns about the information in this section.

11.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with stormwater. If you have any questions or concerns about the information in this section, please consult the ROICC or Contract Representative, who will contact the

appropriate environmental office if additional clarification is necessary.

11.1.1. Key Definitions

- **Best Management Practices.** Schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce the pollution of waters of the United States. BMPs include structural and nonstructural stormwater controls, operation and maintenance procedures, treatment requirements, and practices to control site runoff (e.g., sediment, spillage or leaks, sludge or waste disposal, or drainage from material storage). See the following website for more information: <http://deq.nc.gov/about/divisions/energy-mineral-land-resources/stormwater>
- **Certificate of Stormwater Compliance.** A document providing approval for development activities that meet the requirements for coverage under a stormwater general permit.
- **Discharge (Pollutant).** The addition of any pollutant or combination of pollutants to waters of the United States from any point source, including, but not limited to, any spilling, leaking, pumping, pouring, emitting, emptying, or dumping of any pollutant; this excludes discharges in compliance with a National Pollution Discharge Elimination System (NPDES) permit.

- **Erosion and Sedimentation Control Plan.** Any plan, amended plan, or revision to an approved plan submitted to the North Carolina Division of Land Resources or its delegated authority in accordance with North Carolina General Statute 113A-57. Erosion and Sedimentation Control Plans show the devices and practices that are required to retain sediment generated by the land-disturbing activity within the boundaries of the tract during construction and upon development of the tract. *Note that in North Carolina, the Erosion and Sedimentation Control Plan and the NCG010000 Construction General Permit are considered the Stormwater Pollution Prevention Plan (SWPPP, or SPPP) for a construction site.* See the following website for more information:

<http://deq.nc.gov/about/divisions/energy-mineral-land-resources/stormwater>

- **Land Disturbance.** Areas that are subject to clearing, excavating, grading, stockpiling, and placement/removal of earth material.
- **Nonpoint Source Discharge.** All discharges from stormwater runoff that cannot be attributed to a discernible, confined, and discrete conveyance. (*See also point source discharge, below.*)
- **Point Source Discharge.** Any discernible, confined, and discrete conveyance, including but specifically not limited to, any pipe, ditch, channel, tunnel conduit, well, discrete fissure, container, rolling stock, or concentrated animal feeding operation from

which pollutants are or may be discharged to waters of the State. *(See also nonpoint source discharge, above.)*

- **Stormwater (Runoff).** The portion of precipitation (rain and/or snowmelt) that does not naturally infiltrate into the ground or evaporate but flows via overland flows, channels, or pipes into a defined surface-water channel or stormwater system during and immediately following a storm event. As the runoff flows over the land or impervious surfaces (such as streets, parking lots, and building rooftops), it accumulates sediment and/or other pollutants that could pollute receiving streams.
- **Stormwater Associated with Construction Activities.** The discharge of stormwater from construction activities, including clearing, grading, and excavating, that result in a land disturbance of equal to or greater than 1 acre, per 40 CFR 122.
- **Stormwater Associated with Industrial Activities.** The discharge from any conveyance that is used for collecting and conveying stormwater and which is directly related to manufacturing, processing, or raw materials storage areas from an applicable industrial plant or activity, per 40 CFR 122.
- **Stormwater Associated with Municipal Activities.** The discharge of stormwater from municipal activities, including public works shops, vehicle maintenance shops, and other municipal activities, with the potential to cause stormwater pollution.

11.1.2. Key Concepts

- **Energy Independence and Security Act (EISA).** In December 2007, Section 438 of EISA was issued. This section requires that Federal facility projects over 5,000 square feet must “maintain or restore, to the maximum extent technically feasible, the predevelopment hydrology of the property with regard to temperature, rate, volume, and duration of flow.” In January 2010, the DoD Policy of Implementing Section 438 of the EISA was issued; this document includes a flowchart with implementation steps.
- **Good Housekeeping.** Good housekeeping practices refer to the maintenance of a clean and orderly facility to prevent potential pollution sources from coming into contact with stormwater. The practices include procedures to reduce the possibility of mishandling materials or equipment. Good housekeeping practices benefit stormwater quality and also provide for a clean, safe place for employees and clients. *Note that good housekeeping is one of the six minimum control measures (MCMs) of the MS4 permit requirements.*
- **Low Impact Development (LID).** LID is a holistic approach that incorporates site-specific ecosystem and watershed-based considerations for planning and design. The goal of LID is to mimic a site’s predevelopment hydrology by using design techniques that infiltrate, filter, store, evaporate, and detain runoff close to the source. LID seeks to control

non-point source pollutants “nature’s way,” through the application of plant-soil-water mechanisms that maintain and protect the ecological and biological integrity of receiving waters and wetlands.

- **National Pollution Discharge Elimination System.**

The national program for issuing, modifying, revoking, reissuing, terminating, monitoring, and enforcing permits. The NPDES stormwater program regulates stormwater discharges from three potential stormwater sources, as follows:

- **Construction Activities.** LDAs that disturb 1 or more acres need an NPDES permit. At a minimum, these permits require the development of a site-specific Erosion and Sedimentation Control Plan to address sediment controls during construction and upon development of the tract. As previously noted, the Erosion and Sedimentation Control Plan and the NCG010000 Construction General Permit are considered the SWPPP for a construction site in North Carolina. In the applicable areas of the installation, a State Stormwater Management Permit and coverage under the Construction General Permit may be required. *Note that construction site runoff control is also one of the six MCMs of the Municipal Separate Storm Sewer Systems (MS4) permit requirements.*
- **Industrial Activities.** Owners and operators of industrial facilities that fall into any of the 30 industrial sectors identified by EPA stormwater

regulations need an NPDES Phase I permit if stormwater is discharged directly into surface water (or MS4). The permit regulations specify steps that facility operators must take prior to becoming eligible for permit coverage and actions that must be taken to continue coverage under an existing permit. These steps and actions include, but are not limited to, effluent limits, monitoring, inspection, sampling, reporting, and corrective action requirements.

- o **Municipal Separate Storm Sewer Systems.** Owners and operators of MS4s need an NPDES Phase II permit. An MS4 is a system of pipes and drainage ditches within an urbanized area used to collect storm runoff and convey it to receiving waters. Polluted runoff is commonly transported through MS4s, from which it is often discharged untreated into local waterbodies.
- **Operational Requirements.** Equipment, discharge, and material use requirements that apply to all construction and industrial activities.
- **Post-Construction Requirements.** The management of stormwater generated on a stable, established site after the construction process is complete. The State Stormwater Management Program sets forth requirements for post-construction stormwater runoff control. *Note that post construction is one of the six MCMs of the MS4 permit requirements.*

- **Stormwater Pollution Prevention Plan.** A plan required by permits provided under NPDES that provides guidance to prevent stormwater pollution from construction, industrial, or municipal activities. *Note that the terminology for this plan (and associated acronym) varies somewhat from State to State.*

11.1.3. Environmental Management System

Contractor practices associated with stormwater include the following:

- Boat, ramp, dock cleaning
- Channel dredging
- Composting
- Construction/demolition/renovation
- Erosion/runoff control
- Fueling and fuel management/storage
- HM storage
- Land clearing
- Laundry
- Landscaping
- Livestock operations
- Pesticide/herbicide management and application
- Range residue clearance

- Road construction and maintenance
- Sewers
- Sidewalk and road deicing
- Soil excavation/grading
- Stormwater collection/conveyance
- Surface washing
- Vehicle parking
- Wash rack

Other activities that contractors could be involved in that may cause stormwater pollution include:

- Grounds maintenance (herbicide, pesticides, fertilizer, etc.)
- Outdoor material storage
- Building/roof repairs
- Industrial activities

The potential impacts of these activities on the environment include degradation of water quality and damage to public and private property due to flooding.

11.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard the installation must be aware of and adhere to all applicable regulations and requirements regarding potential stormwater contamination, which include but may not be limited to:

- **Clean Water Act of 1972.** Establishes the basic structure for regulating discharges of pollutants into the waters of the United States. The CWA establishes that no oil or hazardous substances should be discharged into or upon the navigable waters of the United States or adjoining shorelines, which may affect natural resources under the management of the United States through the following goals: (1) eliminate the introduction of pollutants into waters of the United States, and (2) develop water quality, which protects and propagates fish, shellfish, and wildlife and provides for recreation in and on the water.
- **40 CFR 122, National Pollutant Discharge Elimination System.** Requires industrial, construction, and municipal stormwater permits for the discharge of pollutants from any point source into waters of the United States.
- **15A NCAC Chapter 4.** Requires all persons conducting a land-disturbing activity to take all reasonable measures to protect all public and private property from damage caused by the release of sediments from the activity. The primary tool used to accomplish the objective is the development of an Erosion and Sedimentation Control Plan.
 - o Identify critical areas
 - o Limit exposure areas
 - o Limit time of exposure
 - o Control surface water

- o Control sedimentation
- o Manage stormwater runoff

More information can be found at:

<http://reports.oah.state.nc.us/ncac.asp?folderName=\Title%2015A%20-%20Environmental%20Quality\Chapter%2004%20-%20Sedimentation%20Control>

- **15A NCAC 02H.1000 Stormwater Management.**

The State Stormwater Management Program requires all persons conducting LDAs that (1) require a Coastal Area Management Act (CAMA) Major Development Permit or an Erosion and Sedimentation Control Plan, and (2) are located within coastal counties or drain to specific classifications of water bodies, to protect surface waters and highly productive aquatic resources from the adverse impacts of uncontrolled high-density development or the potential failure of stormwater control measures. To receive permit approval, projects must limit the density of development, reduce the use of conventional collection systems in favor of vegetative systems, and incorporate post-construction, structural BMPs.

11.3. PRIOR TO SITE WORK

Contractors are required to address the following in the below section prior to beginning site work.

11.3.1. Construction Notifications

Any project involving LDAs aboard the installation must be reviewed by the installation's NEPA Review Board prior to the onset of work so that potential impacts of the project and associated mitigation measures (if necessary) can be

Any project involving LDAs aboard the installation must be reviewed by the installation's NEPA Review Board prior to the onset of work.

determined. Documentation of this review should have been provided to the ROICC or Contract Representative and may include mandatory conditions affecting the construction/implementation of the project. Consult the ROICC or Contract Representative to obtain or review any NEPA documentation associated with the project in the contract.

11.3.2. Familiarity with the Stormwater Phase I Industrial Permit

Discharges of industrial stormwater have the potential to contain contaminants from industrial activity. Because of this, MCB Camp Lejeune holds a Stormwater Phase I industrial permit. This type of discharge is defined and regulated in 40 CFR 122, the EPA final rule regarding NPDES stormwater permitting.

Contractors are responsible for preparing project-specific permit applications and related plans and for coordinating the permit review schedule with the ROICC or Contract Representative.

Daily industrial operations discharging stormwater aboard MCB Camp Lejeune and MCAS New River are covered under an individual NPDES permit. In accordance with the permit, the installation maintains an industrial SWPPP that identifies potential sources of pollution that may affect the water quality of stormwater discharges associated with an industrial activity. Refer to Section 11.4 for more information on contractor responsibilities associated with this permit.

11.3.3. Familiarity with the Stormwater Phase II Municipal Permit

Discharges of municipal stormwater have the potential to contain contaminants from municipal activity. Because of this, MCB Camp Lejeune holds a Stormwater Phase II municipal permit. This type of discharge is defined and regulated in 40 CFR 122, the EPA final rule regarding NPDES stormwater permitting.

Daily municipal operations discharging stormwater aboard MCB Camp Lejeune and MCAS New River are covered under an NPDES permit. In accordance with the permit, the installation maintains a municipal Stormwater Plan to address the six MCMs of the permit, as well as other requirements. Refer to Section 11.4 for more information on contractor responsibilities associated with this permit.

11.3.4. Project-Specific Construction Permits

Contractors are responsible for preparing all project-specific stormwater permit applications and related plans and for coordinating the permit review schedule with the ROICC or

Contract Representative. MCB Camp Lejeune is the responsible party for all project-specific stormwater permits

All permit-required plans and applications must go through internal approval before being submitted to the appropriate State agency.

located outside of Public-Private Venture (PPV) housing. All permit-required plans and applications must be submitted to the appropriate MCB Camp Lejeune organization to go through internal approval prior to submission to the appropriate State agency. The permit review schedule should allow adequate time for internal review prior to State submission deadlines.

Adequate review time fluctuates and is based on the type of permit application. Stormwater compliance should be coordinated with the appropriate PPV partner for housing-related projects outside the jurisdiction of MCB Camp Lejeune.

Permit coverage is required under the North Carolina General Permit No. NCG010000 (General Permit) for construction activities that disturb 1 acre or more of land. Three copies of a proposed Erosion and Sedimentation Control Plan must be prepared and submitted to the NCDEQ Sedimentation Control Commission (or to an approved local program) at least 30 days prior to beginning construction activity to obtain coverage under the General Permit. A copy of the plan will be kept on file at the job site at all times while the site is active. **Coverage under the permit becomes effective when a plan approval is issued. No LDAs may take place prior to receiving the plan approval.** The

approved plan is considered a requirement or condition of the General Permit; deviation from the approved plan will constitute a violation of the terms and conditions of the permit unless prior approval for the deviations has been obtained.

A State Stormwater Management Permit, issued in accordance with 15A NCAC 02H.1000, is required for all development activities that require a CAMA Major Development Permit or an Erosion and Sedimentation Control Plan and that meet any of the following criteria:

- Development within the 20 coastal counties
- Development within 1 mile of and draining to any waters classified as High Quality Water (HQP) and rated “excellent” based on biological and physical/chemical characteristics through the NCDWR monitoring or special studies, primary nursery areas designated by the Marine Fisheries Commission, and other functional nursery areas designated by the Marine Fisheries Commission
- Development that drains to an Outstanding Resource Water, which is a subset of HQW that is intended to protect unique and special waters having excellent water quality and being of exceptional ecological or recreational significance to the State or Nation

A State Stormwater Management Permit is required for all activities that will disturb 1 acre or more of land.

Because the installation is in a coastal county, any project that disturbs greater than 1 acre of land (requiring coverage under the General Permit for construction activity) will also require a State Stormwater Management Permit. A State Stormwater Management Permit application must be submitted and filed with the NCDEQ, Division of Water Quality, after the construction plans and specifications are complete and before construction activities begin. Additional information is available on the NCDEQ website:

<http://deq.nc.gov/about/divisions/energy-mineral-land-resources/stormwater>

State Stormwater Management Permits typically specify design standards for conveyance systems and structural BMPs, a schedule of compliance, and general conditions to which the permittee must adhere.

11.4. RESPONSIBILITIES DURING SITE WORK

The contractor is responsible for maintaining the quality of the stormwater runoff and preventing pollution of stormwater at the construction/job site. The job site may be inspected by installation environmental personnel to ensure compliance with the contractor's construction and/or the installation's industrial SWPPP, municipal stormwater plan, and applicable permits. The following requirements apply to all projects at the installation that have the potential to impact water quality:

- Any changes to the project area that do not comply with the approved Erosion and Sedimentation Control Plan, alter the approved post-construction stormwater conveyance system, or could otherwise significantly change the nature or increase the quantity of pollutants discharged should be immediately communicated to the ROICC or Contract Representative.
- All permitted erosion and sedimentation control projects will be inspected by the contractor at least once every 7 calendar days (unless discharges to a 303(d)-listed water body are occurring) and within 24 hours after any storm event greater than 0.5 inch of rain per 24-hour period, as required by the North Carolina General Permit No. NCG010000. Inspection results shall be maintained by the designated contractor throughout the duration of an active construction project.
- Equipment used during the project activities must be operated and maintained in such a manner as to prevent the potential or actual pollution of the surface or ground waters of the State.
- No POL products (e.g. fuels, lubricants, hydraulic fluids), coolants (e.g., antifreeze), or any other substance shall be discharged onto the ground, into surface waters, or down storm drains (to include leaking vehicles, heavy equipment, pumps, and/or structurally deficient containers of hazardous materials).

- Spent fluids shall be disposed of in a manner so as not to enter surface or ground waters of the State, or storm drains. Disposal of spent fluids is outlined in Section 7.0.
- Implement spill prevention measures, clean up all spills immediately, and follow the spill reporting requirements presented in Section 5.0. Any spilled fluids shall be cleaned up to the extent practicable and disposed of in a manner so as not to allow their entry into the water (surface or ground) of the State. Refer to Section 5.0 for emergency and spill response procedures.
- Herbicide, pesticide, and fertilizer use shall be consistent with the Federal Insecticide, Fungicide, and Rodenticide Act and shall be used in accordance with label restrictions. Refer to Section 7.0 for additional information on Hazardous Material/Hazardous Waste Management.
- Particular care must be used when storing materials outside. Materials and equipment stored outside that could potentially affect the quality of stormwater runoff include, but are not limited to, garbage dumpsters, vehicles, miscellaneous metals, chemical storage, fuels storage, wood products, and empty storage drums. These materials should be stored under cover whenever practicable. Contact the ROICC or Contract Representative with any questions about whether an outdoor storage practice is acceptable.

- Use good housekeeping practices to maintain clean and orderly work areas, paying particular attention to those areas that may contribute pollutants to stormwater. For industrial activities, refer to the link below for more information on best management practices to prevent stormwater pollution. EPA Industrial Fact Sheet Series for Activities Covered by EPA's multi-sector general stormwater permit: <http://www.epa.gov/npdes>

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12.0 SOLID WASTE, RECYCLING, AND POLLUTION PREVENTION (P2)

Contractors should minimize the amount of solid waste requiring disposal in a landfill.

The installation has a proactive P2 and recycling program, and contractors should minimize the amount of solid waste requiring disposal in a landfill. This section addresses solid waste, including both municipal solid waste (MSW) and construction and demolition (C&D) waste. HM and HW are discussed in Section 7.0 of this guide. Contractors are required to comply with all Federal, State, and local laws and regulations for proper disposal and recycling of all solid wastes.

12.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with solid waste, recycling, and pollution prevention. If you have any questions or concerns about the information in this section, please consult the ROICC or Contract Representative, who will contact the appropriate environmental office if additional clarification is necessary.

Please consult the ROICC or Contract Representative with any questions or concerns about the information in this section.

12.1.1. Key Definitions

- **Construction and Demolition Debris.** Inert materials generated during the construction, renovation, and demolition of buildings, roads, and bridges. C&D waste often contains bulky, heavy materials such as concrete, lumber (from buildings), asphalt (from roads and roofing shingles), gypsum (the main component of drywall), and glass (from windows).
- **Green Procurement (GP).** The purchase of products and services that are environmentally preferable, when compared with competing products that serve the same purpose, in accordance with federally mandated “green” procurement preference programs. GP is intended to have a lesser or reduced negative effect on human health and the environment, and to permit fulfilling the social, economic, and other requirements of present and future generations.
- **Pollution Prevention.** Reducing the amount of pollution entering waste streams or otherwise released to the environment through source reduction and process efficiencies.
- **Recycling.** Activities that may include collection, separation, and processing, by which products or other materials are recovered from the solid waste stream for use as raw materials in the manufacturing of new products. Recycling also includes using, reusing, or reclaiming materials, as well as processes

that regenerate a material or recover a usable product from it.

- **Municipal Solid Waste.** Any solid materials discarded, including garbage, construction debris, commercial refuse, non-hazardous materials, non-recyclable wood, or other non-recyclable material per BO 11350.1, Refuse Disposal Procedures.

12.1.2. Key Concepts

- **Pollution Prevention/Green Procurement.** Installation contractors are strongly encouraged to use P2 and GP practices.
- **Qualified Recycling Program (QRP).** An organized operation that diverts or recovers scrap or waste streams and that identifies, segregates, and maintains the integrity of the recyclable materials in order to maintain or enhance the marketability of the materials.
- **Recycling.** Recycling is required on the installation. The MCB Camp Lejeune Landfill (Base Landfill) Recycling Center accepts specified recyclables according to the schedule in Table 12-1. Call (910) 451-4214 prior to a bulk turn-in.
- **Solid Waste.** Solid waste is disposed of in accordance with contract specifications (off the installation or at the Base Landfill). Data related to disposal off the installation (to include C&D waste) must be provided to the ROICC or Contract Representative on a monthly basis.

- **Source Reduction.** Any practice that reduces the amount of any HM, pollutant, or contaminant entering any waste stream or released into the environment prior to recycling, treatment, and disposal that could reduce the hazard to public health and the environment. Source reduction may include equipment or technology modification; process or procedure modification; reformulation or redesign of products; substitution of raw materials; and improvements in housekeeping, maintenance, training, or inventory control.

12.1.3. Environmental Management System

Contractor practices associated with solid waste, recycling, and P2 include the following:

- Battery management
- Building operation/maintenance/repair
- Composting
- Construction/demolition/renovation
- Equipment operation/maintenance/disposal
- Grease traps
- HW disposal offsite transport
- Land clearing
- Livestock operations
- Metal working
- Packaging/unpackaging

- Paint removal
- Painting
- Parts replacement
- Polishing
- Range residue clearance
- Recreational facilities operation
- Road construction maintenance
- Rock crushing operations
- Solid waste collection/transportation
- Storage tank management
- Urban wildlife management
- Vehicle maintenance

The potential impacts of these activities on the environment include soil degradation, surface water quality degradation, depletion of landfill space, and depletion of nonrenewable resources.

12.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard the installation must be aware of and adhere to all applicable regulations and requirements regarding solid waste disposal, recycling, and P2, which include but may not be limited to the following:

- [BO 5090.17, Solid Waste Reduction – Qualified Recycling Program.](#) Provides guidance for solid

waste reduction, P2, and management of recyclable materials.

- **BO 11350.2D, Refuse Disposal Procedures.** Establishes procedures for the separation, collection, and disposal of refuse and the disposal of waste wood products.
- **DoD Instruction 4715.4, Pollution Prevention.** Establishes the DoD requirement for installation QRP and calls for GP.
- **EO 13423, Strengthening Federal Environmental, Energy and Transportation Management.** Integrates prior practices, strategies, and requirements to further enhance the environmental and energy performance and compliance requirements. The EO sets goals in several environmental areas, including recycling.
- **EO 13514, Federal Leadership in Environmental, Energy, and Economic Performance.** Expands on the environmental performance requirements for Federal agencies, to include setting goals for solid waste diversion.
- **Pollution Prevention Act of 1990 (42 USC 13101 et seq.).** Establishes the national policy that “pollution should be prevented or reduced at the source whenever feasible,” and establishes the following hierarchy: source reduction, recycling, treatment, and disposal.
- **Resource Conservation and Recovery Act of 1976.** Governs the disposal of solid waste and establishes

Federal waste disposal standards and requirements for State and regional authorities. The objectives of Subtitle D are to assist in developing and encouraging methods for the disposal of solid waste that are environmentally sound and that maximize the utilization of valuable resources recoverable from solid waste.

- **Solid Waste Disposal Act (SWDA) of 1965.**
Requires Federal facilities to comply with all Federal, State, interstate, and local requirements concerning the disposal and management of solid wastes, including permitting, licensing, and reporting requirements. The SWDA encourages the reuse of waste through recycling and requires the procurement of products that contain recycled materials.

12.3. SOLID WASTE REQUIREMENTS

Contractors must follow all Federal, State, and local requirements regarding the collection, storage, and disposal of solid waste. Contact the ROICC or Contract Representative for additional information regarding solid waste requirements.

At a minimum, the following actions are required for all contractors:

1. Prior to performing work that will or may generate solid waste at the installation, all contractors must provide their ROICC or Contract Representative with a copy of their Solid Waste Disposal Permit

unless the use of the Base Landfill is authorized for disposal. If the Base Landfill is authorized, the contractor must contact the Base Landfill Operations Clerk to ensure the contract is registered in the Landfill Tracking System. Recycling should be coordinated with the ROICC or Contract Representative and the Landfill Manager.

2. Provide the weight of ALL waste, both MSW and C&D, that is either disposed of or recycled, to the ROICC or Contract Representative, with a copy to the Landfill Manager. This requirement does not apply if the landfill/recycling facility picks up or accepts materials directly from the contractor. If contractors transport waste offsite for disposal, it is mandatory that they track the material weight and provide that information to their ROICC or Contract Representative for input into the annual Pollution Prevention Annual Data Summary.

In addition, contractors producing solid waste on the installation are required to take these steps:

- Pick up solid waste, separate it according to material type, and place it in covered containers of the correct type that are regularly emptied for recycling or landfilling.
- Verify that the solid waste contains no HM or HW.
- Prevent contamination of the site and the surrounding areas when handling and disposing of waste.

- Leave the project site clean upon completion of a project.

12.3.1. MCB Camp Lejeune Landfill Acceptable Waste Streams

To dispose of waste at the Base Landfill, contractors must be authorized with a valid construction pass and placard representing the related contract. Contractors must also contact the Landfill Operator prior to unloading refuse. Contact the ROICC or Contract Representative with any questions regarding use of the landfill or to coordinate disposal.

The Base Landfill accepts certain types of solid waste under the conditions specified in Table 12-1. Base Landfill hours of operation are 0730 to 1530, Monday through Friday, but ACM waste must be delivered between 0700 and 1000, Monday through Thursday. Each material must be separated into different loads.

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Table 12-1. Base Landfill Requirements

No Personal Property/ Off-Base Trash Accepted	
Landfill Operating Hours	
0700-1500 Monday – Thursday 0700-1400 Friday	
Wood Products	
The following products may be mixed together and delivered to the landfill: • Scrap lumber (unpainted) • Embark boxes (broken down) • Pallets (broken/untreated) The following products must be separated and delivered to the landfill: • Trees (cut to 10 feet or less and free of soil) • Leaves and scrubs • Serviceable pallets	
Lead Based Painted Wood Products	
• Delivered before 1400 Monday – Thursday • Not accepted on Friday • Cut in less than 8-foot lengths • Wrapped in 6-millimeter plastic bags/sealed	
Asbestos (all types)	
• Appointment needed (910-451-5011 / 2946) • Delivered by 1000 (Mon – Thurs.) • Not accepted on Friday • Double wrapped in 6-millimeter plastic bags	

- Sealed with duct tape - Labeled and manifested prior to delivery
Organic Products
- Leaves, pine straw, grass, and shrub clippings - No bags or containers allowed - No twigs or limbs over 2 inches in diameter - Less than 6-foot lengths
Concrete
- Delivered separately from other items - Wire and rebar must be cut off flush with exposed surfaces - Concrete and culverts - Bricks and blocks - Mortar products
Soil
Non-contaminated soil accepted
Recyclable Products (Must be separated and dropped off at a designated recycling drop-off point or at a Recycling Center)
- Wood pallets (delivered separately) - White paper (mixed flat or shredded) - Newspaper - Magazines - Military publications (binders removed) - Phone books - Plastic and glass (containers or bottles) - Toner cartridges - Cardboard (delivered separately if in bulk)

• Vinyl siding (delivered separately, in less than 6-foot lengths) • Asphalt shingles (delivered separately)
Scrap metals
Other Related Information
Asphalt may be accepted in small quantities, as needed, at the discretion of the Landfill Manager (large quantities of asphalt must be taken off the installation).
All furniture must be accompanied by a DD Form 1348, with a classification of rejected by the Base Property Office AND downgraded to scrap by Defense Logistics Agency Disposition Services (DLADS).
All other Base or USMC property must be accompanied by a DD Form 1348 and downgraded to scrap by DLADS.
Scrap materials related to ordinance, ammunition or dangerous items , including containers, tubes, and packing, must also be accompanied by Ammunition, Explosives, and Other Dangerous Articles (AEDA) certifications and copies of the certifier and verifier's appointment letters.
Phone Numbers: (area code 910) • Landfill Manager 451-4998 • Recycling Manager 451-4214 • Landfill Fax 451-9935 • Landfill Clerk 451-2946 • EMD 451-5837 • EOD 451-0558

Unacceptable Items

- Hazardous Waste
- Liquid Waste
- Useable Appliances
- Paint and Paint Cans
- Appliances
- Electronics
- Computer Equipment
- Batteries
- Wire (Communication/Barbed/ Concertina)
- Oyster Shells
- Contaminated Soil
- Tires
- 55-Gallon Drums
- Oil Filters
- Petroleum Containers
- Regulated Medical Waste
- PCBs or PCB containers
- Demilitarized Waste
- Construction and Demolition Debris (unless specified in the contract)

12.4. RECYCLING REQUIREMENTS

The installation's QRP is managed by the EMD in collaboration with the Public Works Division. Reducing solid waste saves money and helps protect the environment by conserving natural resources. Additionally, USMC facilities are mandated to recycle, and the installation must meet solid waste diversion goals specified in EO 13514, the

DoD Strategic Sustainability Performance Plan, and the EMS.

12.4.1. Recycling Center

The MCB Camp Lejeune Recycling Center, Building 982, is co-located with the Base Landfill on Piney Green Road. Normal working hours are Monday through Thursday, 0700–1500, and Friday, 0700–1400. All materials should be brought to the Recycling Center. Have the ROICC or Contract Representative contact the Recycling Center at (910) 451-4214 for additional details. Call Recycling Coordinator at (910) 451-4214 for specific types and categories of materials accepted.

The following types and categories of materials are accepted for recycling but must be delivered to the Recycling Center on Piney Green Road:

- Scrap metal
- Steel (high temperature, corrosion resistant)
- Brass (includes spent/fired munitions, but excludes brass casings above .50 caliber; please call the Recycling Coordinator at (901) 451-4214 for details and documentation requirements)
- Copper and copper wire
- Aluminum (plate, sheet, scrap) and aluminum cans
- Paper (white, news, magazine)
- Cardboard

- Glass bottles (no window, windshields, or drinking glass)
- Plastic bottles
- Toner cartridges

Special arrangements may be made for other materials (C&D waste) or larger volumes of commonly recycled materials from events such as C&D. Regulations set forth in BO 11350.1 must be followed.

12.4.2. Other Recyclables

- **Asphalt Pavement.** Asphalt must be removed and delivered to an asphalt recycling facility. Contractors must provide a record of the total tons of asphalt recycled and the corporate name and location of the recycling facility to their ROICC or Contract Representative, with a copy to the Landfill Manager.
- **Empty Metal Paint Cans.** Take empty metal paint cans to Building S-962 for recycling. Turn in all HM cans or HM containers that are generated from MCB Camp Lejeune or MEF contracts to Building S-962 on Michael Road on the scheduled contractor turn-in day. Have the ROICC or Contract Representative contact EMD for more information. Any waste generated from this process must be managed appropriately.
- **Other Metals.** Take other metals to the DLADS disposal area in Lot 201, following the guidelines of BO 5090.17.

- **Red Rag Recycling.** Contractors should seek a red rag program to supply and launder shop rags. This service supplies clean rags and picks them up after use. The rags are laundered offsite and returned.
- **Universal Waste.** See Section 7.0 of this guide for management procedures.
- **Unused Hazardous Materials.** Turn in these materials to the HM Free Issue Point, Building 977 on Michael Road. Have the ROICC or Contract Representative contact the Free Issue Point at (910) 451-1482.
- **White Rag Recycling.** White rags are used in painting (these have no dye and thus do not interfere with these types of operations) and may be laundered offsite in a program analogous to the red rag recycling service.

12.5. POLLUTION PREVENTION AND GREEN PROCUREMENT

MCB Camp Lejeune is subject to GP requirements. GP implements environmentally protective principles in the procurement arena and includes preferential use of the following:

- Products made from recovered materials
- Biobased products
- Water- and energy-efficient products
- Alternatives to ozone-depleting substances

- Non-toxic and less-toxic products
- Electronics that meet Electronic Product Environmental Assessment Tool standards
- Products that do not contain toxic chemicals, hazardous substances, or other pollutants targeted for reduction and elimination by the DoD
- Products with alternative fuel use/increased fuel efficiency
- Environmentally preferable purchasing practices

Contractors are encouraged to employ GP practices whenever feasible.

13.0 POTENTIAL DISCOVERY OF UNDOCUMENTED CONTAMINATED SITES

MCB Camp Lejeune was placed on the EPA National Priorities List, effective November 4, 1989. To ensure the protection of human health and the environment, a proactive Installation Restoration Program has been established to assess and remediate various sites on the installation. Numerous investigations have been performed to ensure that all of the installation's contaminated sites have been found, but additional contaminated areas may still exist. It is the contractor's responsibility to notify the ROICC or Contract Representative of any unforeseen site conditions while on the installation. It is recommended that any contractors performing intrusive activities on the installation be properly trained in accordance with the OSHA standards in 29 CFR 1910.120(e). If intrusive activities are planned for known contaminated areas, all required environmental training should be completed *prior* to working at MCB Camp Lejeune. Copies of training records should be available upon request by Federal or State regulators.

**Contact the ROICC
or Contract
Representative
with questions or
concerns about
the information in
this section.**

13.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with unforeseen site conditions. If you have any questions or concerns about the information in this section, please consult the ROICC or Contract Representative, who will contact the appropriate environmental office if additional clarification is necessary.

13.1.1. Key Definitions

- **Free Product.** A discharged HM/HW, POL, or environmental pollutant that is present in the environment as a floating or sinking non-aqueous phase liquid that exists in its free state (i.e., exceeds the solubility limit of liquids or saturation limit of soil/solids).
- **National Priorities List.** List of sites of national priority among the known releases or threatened releases of hazardous substances, pollutants, or contaminants.
- **Petroleum, Oil, and Lubricants.** A broad term that includes all petroleum and associated products or oil of any kind or in any form, including, but not limited to, petroleum, fuel oil, vegetable oil, animal oil, sludge, oil refuse, and oil mixed with wastes.
- **Unforeseen Site Condition.** A potentially hazardous or unanticipated site condition encountered on a job site.

- **Munitions and Explosives of Concern.** Military munitions that may pose explosives safety risks, including MEC, UXO, DMM, and munitions constituents present in a high enough concentration to present an explosives hazard.

13.1.2. Key Concepts

- **Notification.** Contractors must notify the ROICC or Contract Representative, in writing, of any unforeseen site conditions prior to disturbing them.
- **Response.** Contractors must stop working and evacuate work areas if unforeseen site contaminants, HM, or MEC/DMM/UXO are suspected to be present.

13.1.3. Environmental Management System

Unforeseen site conditions are potentially applicable to all EMS practices conducted aboard MCB Camp Lejeune.

13.2. OVERVIEW OF REQUIREMENTS

Contractors operating aboard the installation must be aware of and adhere to all applicable regulations and requirements regarding unforeseen site conditions, which include but may not be limited to the following:

- [CERCLA of 1980 and Superfund Amendments & Reauthorization Act \(SARA\) of 1986.](#) Establishes the Nation's HW site cleanup program.

- [Occupational Safety and Health Standards, 29 CFR 1910.](#) Federal standards that govern occupational health and safety to ensure the protection of employees from recognized hazards, such as exposure to toxic chemicals, excessive noise levels, mechanical dangers, heat or cold stress, or unsanitary conditions. The standards include provisions for many facets of employee safety and health, including, but not limited to, employee training, personal protective equipment, HM communication, medical surveillance, and emergency planning.

13.3. UNFORESEEN SITE CONDITION PROCEDURES

Contractors must promptly, before the conditions are disturbed, give a written notice to the ROICC or Contract Representative of (1) any subsurface or latent physical conditions at the site that differ materially from those indicated in the contract, or (2) any unknown physical conditions at the site, of an unusual nature, that differ materially from those ordinarily encountered.

The ROICC or Contract Representative will investigate the site conditions promptly after receiving the notice.

The most common unforeseen conditions at MCB Camp Lejeune typically relate to POL contamination and MEC/DMM/UXO. Procedures for these scenarios are provided in the following sections.

13.3.1. Petroleum, Oil, and Lubricants

The most frequently encountered condition that requires EMD assistance is the presence of a POL odor while excavating. If an odor or any free product is encountered during construction or excavation activities, take the following actions:

- Stop work.
 - Immediately clear the area of all personnel to a safe distance upwind of the suspected area.
 - Call the Fire and Emergency Services Division (911) immediately if personnel are affected or injured by the suspected contaminant.
 - Call the Fire and Emergency Services Division to properly secure the area.
 - Notify the ROICC or Contract Representative so that the EMD Spill Response Team will be contacted to determine the appropriate course of action.
- ---

If there is an odor, stop work and immediately clear the area of all personnel to a safe distance upwind of the suspected area.

Please note that if contaminated soil is removed during excavation activities, the soil will have to be characterized prior to disposition. While it is staged and awaiting characterization sampling results, contaminated soil is to be placed within a bermed area on an impervious surface or barrier and securely covered with plastic or appropriate

material. Sample results and characterization will determine the ultimate disposition of the soil. In accordance with installation policy, contaminated soil is not permitted to be reintroduced into excavations.

13.3.2. Munitions and Ordnance

MCB Camp Lejeune has been in operation as a military training installation since the early 1940s. As such, munitions or an ordnance item may be encountered during site excavation or construction activities. MEC, DMM, or UXO at MCB Camp Lejeune and its outlying areas typically include flares, mines, grenades, rockets, artillery projectiles, bulk explosives, fuses, or blasting caps. These items may vary in condition from very good/easily recognizable to unrecognizable, fragmented, or corroded scrap metal. MEC, DMM, or UXO may be encountered on the ground surface, partially buried, or completely buried.

Contractors operating aboard the installation should follow the “3R” concept if a possible munitions or ordnance item is discovered: **“Recognize, Retreat, and Report.”**

- **Recognize.** Contractors with the potential to encounter any possible MEC, DMM, or UXO should have a basic knowledge of these items. The item does not have to

Recognize

Retreat

Report

Recognize

Retreat

Report

be specifically recognized or identified, but it is important for personnel to recognize the potential hazard.

- **Retreat.** If a suspected MEC, DMM, or UXO item is encountered, leave the immediate area and DO NOT DISTURB the item. If possible, note the general size and shape of the item, any markings, and the location.
- **Report.** Report all occurrences to the appropriate authority, including any observations (e.g., size, shape, markings, and location).

Stop work immediately if a project unearths a hazardous material, such as MEC/DMM/UXO, and report the situation to the ROICC or Contract Representative.

If a project unearths any potential MEC/DMM/UXO, recognize the potential hazard. Stop work immediately, and have all personnel clear the immediate area. Report the situation and any observations to the ROICC or Contract Representative, who will then report the item to Range Control and Explosive Ordnance Disposal (EOD). The following

link is to a 6-minute “UXO Safety” awareness training video that provides additional guidance.

<http://www.lejeune.marines.mil/OfficesStaff/ExplosivesSafety/%20trainingandguides.aspx>

For other emergency response procedures, please refer to Section 5.0 of this guide.

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14.0 PERMITTING

Contractors operating aboard the installation must ensure that all relevant environmental permits are obtained before work commences onsite. Contractors must work with their ROICC or Contract Representative to determine permitting responsibilities prior to beginning work. Contractors must adhere to all permit conditions. Examples of permits related to the environment are provided in Section 14.3.

14.1. KEY DEFINITIONS AND CONCEPTS

The following key definitions and concepts are associated with contractor permitting requirements. If you have any questions or concerns about the information in this section, please consult the ROICC or Contract Representative, who will contact the appropriate environmental office if additional clarification is necessary.

Please consult the ROICC or Contract Representative with any questions or concerns about the information in this section.

14.1.1. Key Definitions

- **Major Source.** Any source that emits or has the potential to emit 100 tons per year or more of any criteria air pollutant in accordance with Title V of the CAA.

- **Permit.** A legally enforceable document required by statutory regulation for potential sources of pollution that is required for operations that may have an environmental impact. Permits may be administered at the Federal, State, or local level.
- **Target Housing.** Any housing constructed before 1978, with the exception of housing for the elderly and persons with disabilities (unless a child under the age of 6 lives or is expected to live there) and residential dwellings where the living areas are not separated from the sleeping areas (efficiencies, studio apartments, dormitories, etc.).

14.1.2. Key Concepts

- **Permits.** Prior to beginning work aboard the installation, consult applicable permit requirements and ensure that they are met before work begins. Copies of all applicable permits/authorizations should be retained onsite for the life of the project. Additional information on North Carolina permits is found on the following webpage: <http://deq.nc.gov/about/divisions/environmental-assistance-customer-service/deacs-permit-guidance/environmental-permit-assistance>

Consult the ROICC or Contract Representative for additional information concerning the contract's permit requirements. The contractor is responsible for ensuring that all required permits are acquired prior to any work aboard MCB Camp Lejeune.

14.1.3. Environmental Management System

Currently, no practices are associated with permitting under the EMS.

14.2. OVERVIEW OF REQUIREMENTS

Please refer to the individual sections of this Guide for applicable permitting regulations and requirements for each environmental media. Many permits have specific timetables for submittal prior to project initiation. Contractors must consult the permit requirements and ensure that all pertaining permits are obtained in the required timeframe.

14.3. PROJECT PERMITS AND APPROVALS

The NCDEQ website (<http://deq.nc.gov/>) is a useful reference for determining required permits and obtaining necessary forms.

Prior to work being awarded, EMD's NEPA Section should have performed an environmental review of the installation-associated action proponent to comply with NEPA 1969. The outcome of this review would be either a Decision Memorandum or an Environmental Assessment. Contractors must refer to their contract and the requirements

outlined in the NEPA documentation for specific permitting requirements. EMD Program Managers are available for

guidance; however, if the contractor is tasked with preparing permit applications, the contractor is expected to have the capability and expertise required to complete the submittals in accordance with the guidance provided by the regulatory agency that issues the permit. In addition, EMD must be provided with copies of all permits submitted to the NCDEQ. In some cases, EMD must submit the permit application. Please direct questions to the ROICC or Contract Representative.

Some permits that may be required are discussed in applicable sections of this Guide. The following list of permits is not meant to be all-inclusive; please be aware that other permits may also be required. The NCDEQ website (<http://deq.nc.gov/>) is a useful reference for determining required permits and obtaining necessary forms. In addition, any inspection and/or data collection required by the permits must be retained onsite for review upon request.

14.3.1. Stormwater (Section 11.0)

- [NPDES Stormwater Discharge Permit for Construction Activities \(also referred to as General Permit No. NCG010000\)](#). Required for all LDAs that exceed 1 acre; also requires an accompanying Erosion and Sedimentation Control Plan.
- [General Permit SWG050000](#). Required for residential development activities within the 20 coastal counties (including Onslow County) located within 1/2 mile and draining to class SA waters (waters classified as SA are tidal salt waters that are

used for commercial shellfishing or marketing purposes) that disturb less than 1 acre if adding more than 10,000 square feet of built-upon area that will result in a built-upon area greater than 12 percent of the total project area.

- **High-Density Stormwater Permit.** Required when (1) the LDA exceeds 1 acre and impervious surfaces are greater than or equal to 25 percent of the total project area adjacent to non-SA waters or greater than or equal to 12 percent of the total project area adjacent to SA water; or (2) total development exceeds 10,000 square feet of impervious surface.
- **Low-Density Stormwater Permit.** Required when the LDA exceeds 1 acre and impervious surfaces are less than 25 percent of the total project area when adjacent to non-SA waters or less than 12 percent of the total project area when adjacent to SA waters.

14.3.2. Asbestos (Section 8.0)

- **Asbestos Permit Application and Notification for Demolition/Renovation.** DHHS Form 3768, available at the following website (under *Forms & Applications*):

<http://epi.publichealth.nc.gov/asbestos/ahmp.html>

14.3.3. Lead-Based Paint (Section 9.0)

- **North Carolina Lead-Based Paint Abatement Permit Application.** Any person or firm conducting an abatement of a child-occupied facility or target

housing is required to obtain a Lead Hazard Management Plan Permit. The application is available at the following website: <http://epi.publichealth.nc.gov/lead/pdf/LeadAbatePermit08-07.pdf>

14.3.4. Air Quality (Section 4.0)

- **Construction Permits.** Construction permits are required for all new stationary sources and all existing stationary sources that are added to or are modified with new equipment that may emit air pollutants. Permits may be required for the construction or modification of the following types of emission sources:
 - o Boilers
 - o Generators
 - o Engine test stands
 - o Surface coating/painting operations
 - o Refrigerant recovery and recycling operations for other ozone-depleting substances, such as industrial chillers, refrigerators, air conditioning compressors, or cleaning agents.
 - o Chemical or mechanical paint removal, abrasive blasting, grinding, or other surface preparation activities
 - o Fuel storage and fuel dispensing
 - o Woodworking shops

- o Welding shops
- o Bulk chemical or flammables storage
- o Open burning
- o Fire training
- o Rock crushing or other dust-causing activities
- **New Source Review Permit.** A New Source Review permit is a pre-construction permit that authorizes the construction of new major sources of air pollution or major modifications of existing sources.

14.3.5. Wetlands (Section 10.6)

- **Section 404 Clean Water Act Permit.** Contractors working aboard the installation will not perform any work in waters of the United States or wetlands (see definition below) without an approved permit (even if the work is temporary). Unavoidable impacts to wetlands or waters of the United States will require coordination and written approval from the USACE for a Section 404 CWA permit (individual or applicable nationwide permit), the NCDWR for a Section 401c Water Quality certification, and the NCDCM for a Federal Consistency Determination. Failure to acquire written authorization for making impacts to wetlands and/or waters of the United States may result in significant project delays or design modifications. See the following website for more information:

<http://www.epa.gov/laws-regulations>

14.3.6. Drinking Water/Wastewater

- **Approval of Engineering Plans and Specifications for Water Supply Systems.** Applicants must submit engineering plans and specifications at least 30 days prior to the date upon which the Authorization to Construct is desired. Authorization to Construct must be obtained prior to onset of work.
- **Wastewater Extension Permit.** NCDEQ Form FTA 02/03 – Rev. 3 04/05. Applicants submitting Form FTA 02/03 should plan to allow the State approximately 90 days to issue the permit. The Wastewater Extension Permit must be obtained prior to onset of work.

